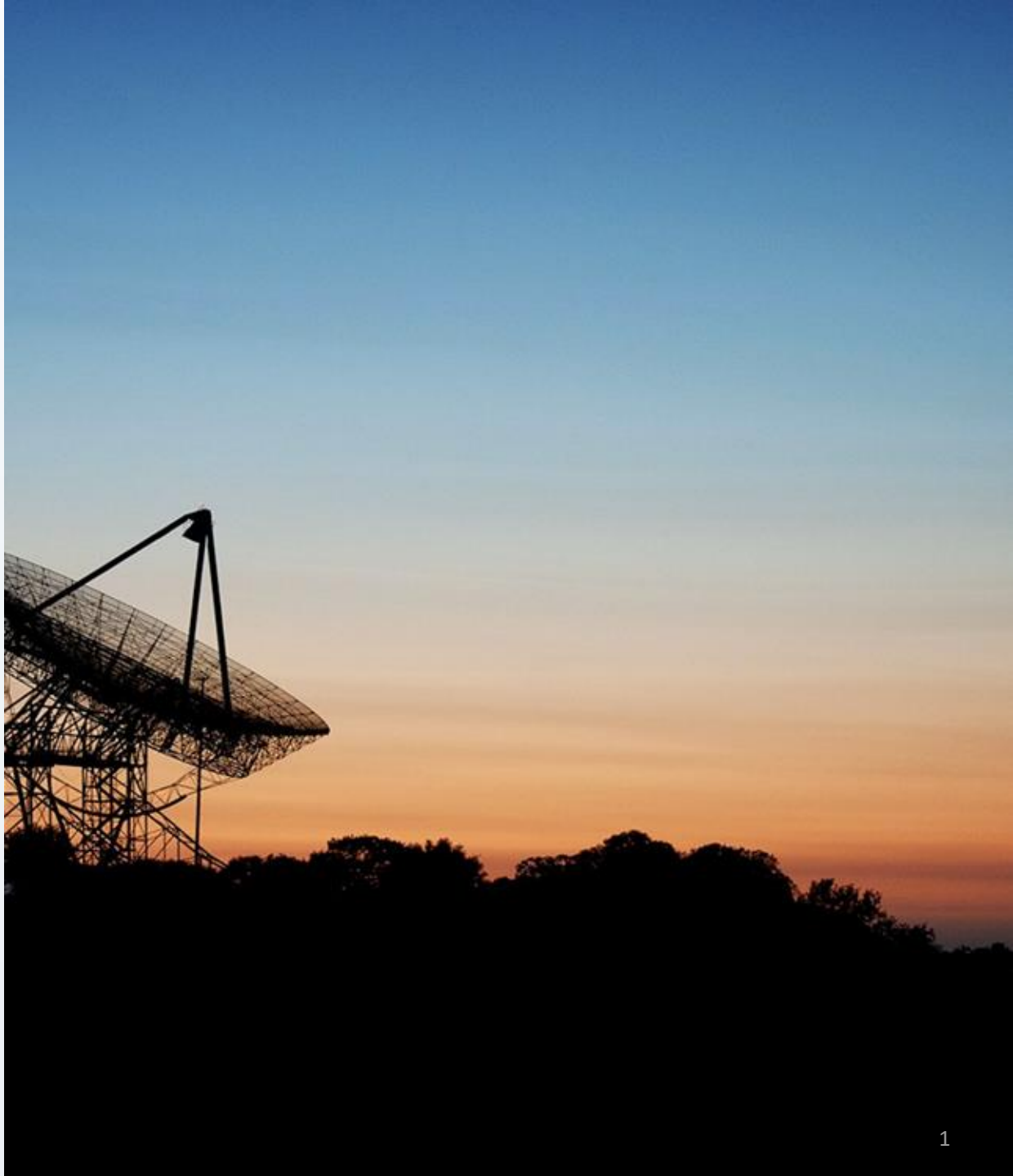
AI and Copyright

Nate Persily

James B. McClatchy Professor of Law, Stanford Law School

Director, Stanford Cyber Policy Center

Attendance Code here!





UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

IN RE: OpenAI, INC., COPYRIGHT INFRINGEMENT LITIGATION This Document Relates To: 1:23-cv-11195-SHS-OTW 1:24-cv-01515-SHS-OTW 1:24-cv-03285-SHS-OTW 1:24-cv-04872-SHS-OTW 1:25-cv-04315-SHS-OTW	25-md-3143 (SHS) (OTW)

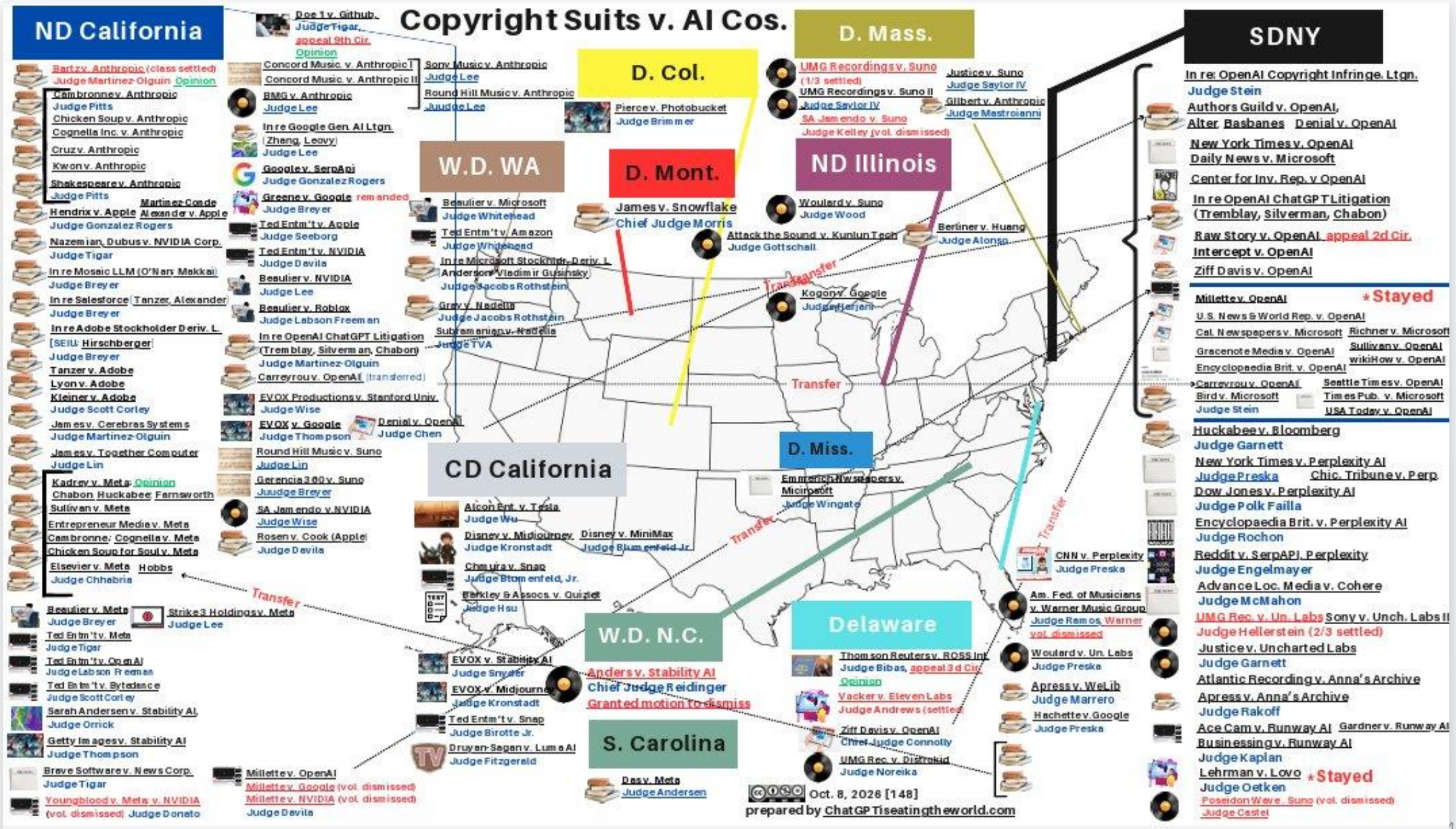
NEWS PLAINTIFFS' COMBINED SUMMARY JUDGMENT BRIEF

REDACTED

I. Introduction

This case is about, as Microsoft's Director of Applied Science put it, "an astonishing theft of unprecedented proportions"; SF1437, perhaps the "largest theft of labor in human history." SF1652. Defendants repeatedly copied millions of Plaintiffs' copyrighted articles in their entirety without permission to produce substitutive commercial AI products. OpenAI's Head of ChatGPT wrote that "[p]ublishers" face an "existential threat" from those products, SF1466, which, he said, "are largely substitutive, period" and "will get more and more substitutive as they get better." SF1473-74. Such admissions eviscerate Defendants' "fair use" defense because substitution is "copyright's bête noire." *Andy Warhol Foundation for the Visual Arts, Inc. v. Goldsmith*, 598 U.S. 508, 528 (2023). For Defendants to prevail on this defense "would," the same Microsoft executive recognized, arguably "make a complete mockery of the idea of 'fair use.'" SF1450.


USA
TODAY


Copyright Suits v. AI Cos.
ND California
Doe 1 v. Github, Judge Tigar, appeal 9th Cir. Opinion
Bartz v. Anthropic (class settled) Judge Martinez-Olguin Opinion
Concord Music v. Anthropic I
Concord Music v. Anthropic II
Sony Music v. Anthropic Judge Lee
Round Hill Music v. Anthropic Juudge Lee
Cambronne v. Anthropic Judge Pitts
Chicken Soup v. Anthropic
Cognella Inc. v. Anthropic
Cruz v. Anthropic
Kwon v. Anthropic
Shakespeare v. Anthropic Judge Pitts
BMG v. Anthropic Judge Lee
In re Google Gen. AI Litgn. (Zhang, Leovy) Judge Lee
Google v. SerpApi Judge Gonzalez Rogers
Greene v. Google remanded Judge Breyer
Martinez-Conde Alexander v. Apple
Hendrix v. Apple Judge Gonzalez Rogers
Nazemian, Dubus v. NVIDIA Corp. Judge Tigar
In re Mosaic LLM (O'Nan; Makkai) Judge Breyer
In re Salesforce (Tanzer, Alexander) Judge Breyer
In re Adobe Stockholder Deriv. L. (SEIU; Hirschberger) Judge Breyer
Tanzer v. Adobe
Lyon v. Adobe
Kleiner v. Adobe Judge Scott Corley
James v. Cerebras Systems Judge Martinez-Olguin
James v. Together Computer Judge Lin
Kadrey v. Meta Opinion
Chabon, Huckabee, Farnsworth Sullivan v. Meta
Entrepreneur Media v. Meta
Cambronne, Cognella v. Meta
Chicken Soup for Soul v. Meta
Elsevier v. Meta Hobbs Judge Chhabria
Beaulieu v. Meta Judge Breyer
Strike 3 Holdings v. Meta Judge Lee
Ted Entm't v. Meta Judge Tigar
Ted Entm't v. OpenAI Judge Labson Freeman
Ted Entm't v. Bytedance Judge Scott Corley
Sarah Andersen v. Stability AI, Judge Orrick
Getty Images v. Stability AI Judge Thompson
Brave Software v. News Corp. Judge Tigar
Youngblood v. Meta v. NVIDIA (vol. dismissed) Judge Donato
Millette v. OpenAI
Millette v. Google (vol. dismissed)
Millette v. NVIDIA (vol. dismissed)
Judge Davila
W.D. WA
Beaulieu v. Microsoft Judge Whitehead
Ted Entm't v. Amazon Judge Whitehead
Ted Entm't v. Apple Judge Seeborg
Ted Entm't v. NVIDIA Judge Davila
Beaulieu v. NVIDIA Judge Lee
Beaulieu v. Roblox Judge Labson Freeman
In re OpenAI ChatGPT Litigation (Tremblay, Silverman, Chabon) Judge Martinez-Olguin
Carreyrou v. OpenAI (transferred)
D. Col.
Pierce v. Photobucket Judge Brimmer
D. Mont.
James v. Snowflake Chief Judge Morris
In re Microsoft Stockholder Deriv. L. Anderson, Vladimir Gusinsky Judge Jacobs Rothstein
Grey v. Nadella Judge Jacobs Rothstein
Subramanian v. Nadella Judge TVA
EVOX Productions v. Stanford Univ. Judge Wise
EVOX v. Google Judge Thompson
Denial v. OpenAI Judge Chen
Round Hill Music v. Suno Judge Lin
Gerencia 360 v. Suno Juudge Breyer
SA Jamendo v. NVIDIA Judge Wise
Rosen v. Cook (Apple) Judge Davila
CD California
Alcon Ent. v. Tesla Judge Wu
Disney v. Midjourney Judge Kronstadt
Disney v. MiniMax Judge Blumenfeld Jr.
Chen v. Snap Judge Blumenfeld, Jr.
Berkley & Assocs. v. Quizlet Judge Hsu
W.D. N.C.
Anders v. Stability AI Chief Judge Reidinger Granted motion to dismiss
EVOX v. Stability AI Judge Snyder
EVOX v. Midjourney Judge Kronstadt
Ted Entm't v. Snap Judge Birotte Jr.
Druyan-Sagan v. Luma AI Judge Fitzgerald
S. Carolina
Das v. Meta Judge Andersen
D. Mass.
UMG Recordings v. Suno (1/3 settled)
UMG Recordings v. Suno II Judge Saylor IV
SA Jamendo v. Suno Judge Kelley (vol. dismissed)
Justice v. Suno Judge Saylor IV
Gilbert v. Anthropic Judge Mastroianni
ND Illinois
Woulard v. Suno Judge Wood
Attack the Sound v. Kunlun Tech Judge Gottschall
Berliner v. Huang Judge Alonso
Kogon v. Google Judge Tarjani
Transfer
Transfer
D. Miss.
Emmerich Newspapers v. Microsoft Judge Wingate
Transfer
Delaware
Thomson Reuters v. ROSS Int. Judge Bibas, appeal 3d Cir. Opinion
Vacker v. Eleven Labs Judge Andrews (settled)
Ziff Davis v. OpenAI Chief Judge Connolly
UMG Rec. v. Distrokid Judge Noreika
Transfer
CNN v. Perplexity Judge Preska
Am. Fed. of Musicians v. Warner Music Group Judge Ramos, Warner vol. dismissed
Woulard v. Un. Labs Judge Preska
Apress v. WeLib Judge Marrero
Hachette v. Google Judge Preska
SDNY
In re: OpenAI Copyright Infringe. Ltgn. Judge Stein
Authors Guild v. OpenAI, Alter, Basbanes Denial v. OpenAI
New York Times v. OpenAI
Daily News v. Microsoft
Center for Inv. Rep. v OpenAI
In re OpenAI ChatGPT Litigation (Tremblay, Silverman, Chabon)
Raw Story v. OpenAI, appeal 2d Cir.
Intercept v. OpenAI
Ziff Davis v. OpenAI
Millette v. OpenAI *Stayed
U.S. News & World Rep. v. OpenAI
Cal. Newspapers v. Microsoft Richner v. Microsoft
Gracenote Media v. OpenAI Sullivan v. OpenAI
Encyclopaedia Brit. v. OpenAI wikiHow v. OpenAI
Carreyrou v. OpenAI Seattle Times v. OpenAI
Bird v. Microsoft Judge Stein Times Pub. v. Microsoft
USA Today v. OpenAI
Huckabee v. Bloomberg Judge Garnett
New York Times v. Perplexity AI Judge Preska Chic. Tribune v. Perp.
Dow Jones v. Perplexity AI Judge Polk Failla
Encyclopaedia Brit. v. Perplexity AI Judge Rochon
Reddit v. SerpAPI, Perplexity Judge Engelmayer
Advance Loc. Media v. Cohere Judge McMahon
UMG Rec. v. Un. Labs Sony v. Unch. Labs II Judge Hellerstein (2/3 settled)
Justice v. Uncharted Labs Judge Garnett
Atlantic Recording v. Anna's Archive
Apress v. Anna's Archive Judge Rakoff
Ace Cam v. Runway AI Gardner v. Runway AI
Businessing v. Runway AI Judge Kaplan
Lehrman v. Lovo *Stayed Judge Oetken
Poseidon Wave v. Suno (vol. dismissed) Judge Castel
Oct. 8, 2026 [148]
prepared by ChatGPTiseatingtheworld.com

Outline

- Intro to Copyright & Fair Use
- Three core US copyright issues
  a. Is training AI copyright infringement?
  b. Is the output of AI copyright infringement?
  c. Who owns work created by AI?
- A note about copyright outside the United States



Some background questions

- Is *machine* learning merely another kind of learning?
- Do LLMs “memorize” materials in training data? So what?
- Can the most powerful LLMs be produced from training only on (a) works in the public domain or (b) for which copyright is licensed?
- How might a licensing regime for all possible materials in training data even work? (See Anthropic Settlement)
- Will nation states compete on the basis of copyright to encourage local training of models where fair use is interpreted broadly?
- Can guardrails ever effectively prohibit the generation of copyrighted material in training data (or beyond training data)?
- What should trademark law, the Digital Millennium Copyright Act, and law regarding the right of publicity deal with AI?

Is AI just like a human learning?

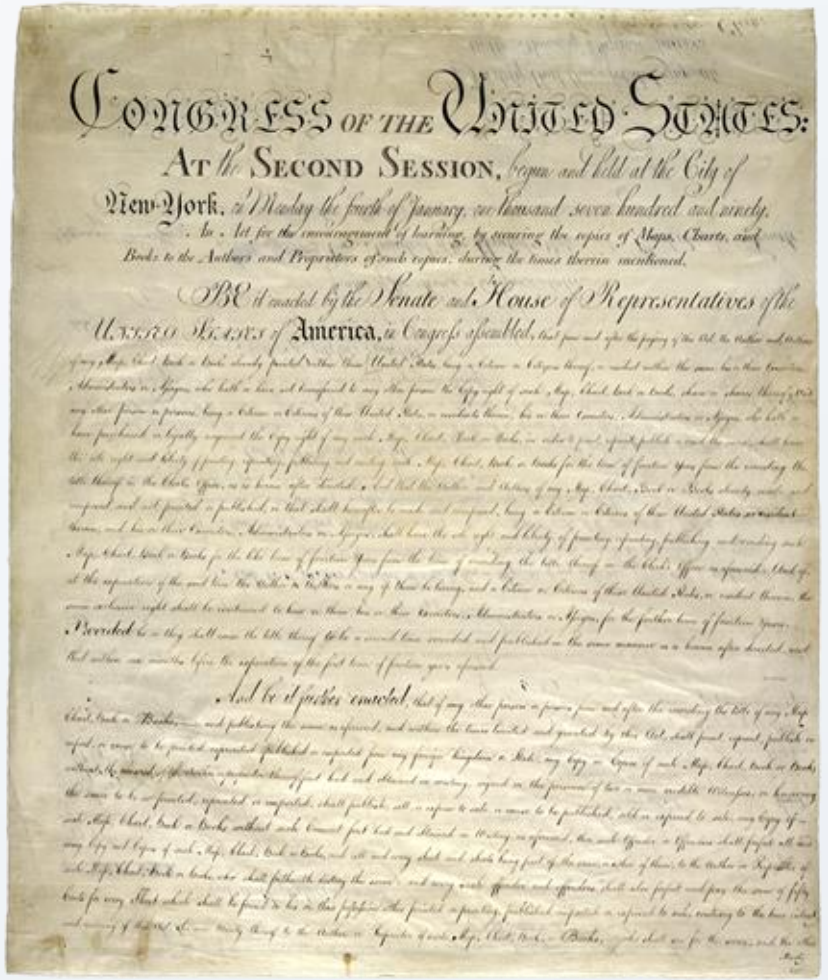
Nor do we agree that AI training is inherently transformative because it is like human learning. To begin with, the analogy rests on a faulty premise, as fair use does not excuse all human acts done for the purpose of learning. A student could not rely on fair use to copy all the books at the library to facilitate personal education; rather, they would have to purchase or borrow a copy that was lawfully acquired, typically through a sale or license. Copyright law should not afford greater latitude for copying simply because it is done by a computer. Moreover, AI learning is different from human learning in ways that are material to the copyright analysis. Humans retain only imperfect impressions of the works they have experienced, filtered through their own unique personalities, histories, memories, and worldviews. Generative AI training involves the creation of perfect copies with the ability to analyze works nearly instantaneously. The result is a model that can create at superhuman speed and scale. In the words of Professor Robert Brauneis, "Generative model training transcends the human limitations that underlie the structure of the exclusive rights."

U.S. COPYRIGHT OFFICE, COPYRIGHT AND ARTIFICIAL INTELLIGENCE, PART 3: GENERATIVE AI TRAINING 45-46 (2025).



The Copyright Clause
(Article I, Section 8 of the U.S. Constitution)

"[The Congress shall have Power . . .] To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries."


CONGRESS OF THE UNITED STATES:
AT the SECOND SESSION, begun and held at the City of
New-York, on Monday the fourth of January, one thousand seven hundred and ninety.
An Act for the encouragement of learning, by securing the copies of Maps, Charts, and
Books to the Authors and Proprietors of such copies, during the times therein mentioned.
BE it enacted by the Senate and House of Representatives of the
United States of America, in Congress assembled, That from and after the passing of this Act no author and
proprietor of any Map, Chart, Book or Books already printed within these United States, being a Citizen or Citizens thereof, or resident within the same, or his, her or their Executors, Administrators or Assigns, shall have the sole right and liberty of printing, reprinting, publishing and vending such Map, Chart, Book or Books for the term of fourteen years from the recording the title thereof in the Clerk's Office, as is hereinafter directed. And that the author and authors of any Map, Chart, Book or Books already made and composed, and not printed or published, or that shall hereafter be made and composed, being a Citizen or Citizens of these United States, or resident therein, and his or their Executors, Administrators or Assigns, shall have the sole right and liberty of printing, reprinting, publishing and vending such Map, Chart, Book or Books for the like term of fourteen years from the time of recording the title thereof in the Clerk's Office aforesaid, and at the expiration of the said term the author or authors, or any of them being a Citizen or Citizens of these United States, or resident therein, the same exclusive right shall be continued to him or them, his or their Executors, Administrators or Assigns, for the further term of fourteen years.
Provided, That all persons who shall within the time hereby limited, have recorded and published the same agreeably to the directions hereinafter mentioned, shall have the like exclusive right for the respective term of fourteen years aforesaid.
And be it further enacted, That if any other person or persons from and after the recording the title of any Map, Chart, Book or Books, and publishing the same as aforesaid, and within the time limited and granted by this Act, shall print, reprint, publish or cause to be printed, reprinted or published, or import or cause to be imported from any foreign Kingdom or State any Map, Chart, Book or Books, without the consent and approbation of the proprietor or proprietors thereof, first had and obtained in writing, signed in the presence of two or more credible Witnesses, or knowing the same to be printed, reprinted or imported, shall publish, sell or expose to sale, or cause to be published, sold or exposed to sale, any Copy of such Map, Chart, Book or Books without such consent first had and obtained as aforesaid, then such Offender or Offenders shall forfeit all and every Copy or Copies of such Map, Chart, Book or Books, and all and every sheet and sheets being part of the same, or either of them, to the author or proprietor of such Map, Chart, Book or Books, who shall forthwith destroy the same; and every such Offender and Offenders shall also forfeit and pay the sum of fifty cents for every sheet which shall be found in his or their possession, either printed or printing, published or exposed to sale, contrary to the true intent and meaning of this Act; the one moiety thereof to the author or proprietor of such Map, Chart, Book or Books, who shall sue for the same, and the

Copyright — The Basics

- Copyright protects expression, no protection for ideas, facts, systems, methods (*17 U.S.C. §102(a),(b)*)

- Owner of the copyright has exclusive right to (*17 U.S.C. §106)*:
  - Reproduce
  - Prepare derivative work*
  - Distribute
  - Perform publicly
  - Display publicly



Sources: 17 U.S.C. §§ 101–102, 106; Fox Broad. Co. v. Dish Network LLC (CD Cal. 2015)

Copyright does not extend to ideas

17 U.S. Code § 102

(a) Copyright protection subsists, in accordance with this title, in original works of authorship fixed in any tangible medium of expression, now known or later developed, from which they can be perceived, reproduced, or otherwise communicated, either directly or with the aid of a machine or device.

(b) In no case does copyright protection for an original work of authorship extend to any idea, procedure, process, system, method of operation, concept, principle, or discovery, regardless of the form in which it is described, explained, illustrated, or embodied in such work.

Fair Use – (17 U.S.C §107)

the fair use of a copyrighted work, including such use by reproduction in copies or phonorecords or by any other means specified by that section, for purposes such as criticism, comment, news reporting, teaching (including multiple copies for classroom use), scholarship, or research, is not an infringement of copyright. In determining whether the use made of a work in any particular case is a fair use the factors to be considered shall include—

(1) the purpose and character of the use, including whether such use is of a commercial nature or is for nonprofit educational purposes;
(2) the nature of the copyrighted work;
(3) the amount and substantiality of the portion used in relation to the copyrighted work as a whole; and
(4) the effect of the use upon the potential market for or value of the copyrighted work.

Does training an AI model violate copyright law?



Future Viability of LLMs Depends on Fair Use

Rightsify stated, "[t]here is no legal precedent for the massive scraping of data for the purposes of creating data sets that can be commercially exploited to potentially create competing works."[198] Others contended that the unauthorized copying of expressive works in AI training adds nothing new while usurping an emerging market for works as training materials.[199]

On the other side, many warned that requiring AI companies to license works in training data would stifle development of a critical technology, entrench the power of those companies that are capable of acquiring or already own sufficient data, and impair national competitiveness. As summarized by the venture capital firm a16z, "imposing the cost of actual or potential copyright liability on the creators of AI models will either kill or significantly hamper their development . . . . The result will be far less competition, far less innovation, and very likely the loss of the United States' position as the leader in global AI development."[200] Stability AI called it "doubtful" that generative AI would be possible without the fair use defense and maintained that "[t]he U.S. has established global leadership in AI due, in part, to a robust, adaptable, and principles-based fair use doctrine that balances creative rights with open innovation."[201]

Fair Use — The Four Factors (17 U.S.C §107)

- **Purpose and character of the use**
    - Transformative (as opposed to derivative)? Commercial or nonprofit?
- **Nature of the copyrighted work**
    - Creative vs. factual; published vs. unpublished
- **Amount and substantiality used**
    - How much and is it “heart of the work”?
- **Effect on the potential market for the original**

    Evidence of substitution and licensing markets?



Technology Analogies to AI Training: *Google Books, Betamax/Photocopier, Napster*

Google Books*:*

- Mass scanning + snippet display to enable search = “highly transformative”; outputs strictly limited; minimal substitution. Template for “intermediate copying + constrained outputs”

  Authors Guild v. Google, Inc., No. 13-4829 (2d Cir. 2015)

Betamax/“photocopier”:

- Device enabling substantial non-infringing uses (e.g., time-shifting) can be lawful; private, noncommercial home time-shifting was fair use

  Sony Corp. of America v. Universal City Studios, Inc., 464 US 417 (1984)

Napster:

- Centralized service that facilitated massive user infringement; contributory and vicarious liability attached. Signals risk where a service increases infringement at scale

  A&M Records, Inc. v. Napster, Inc., 239 F.3d 1004 (9th Cir. 2001)

Photocopying in labs:

- Existence of a functioning licensing market (CCC) weighed against fair use for systematic archiving (photocopying and distributing academic articles)

  American Geophysical Union v. Texaco Inc., 60 F.3d 913 (2d Cir. 1994)

Authors Guild v. Google (2015)

Key Facts

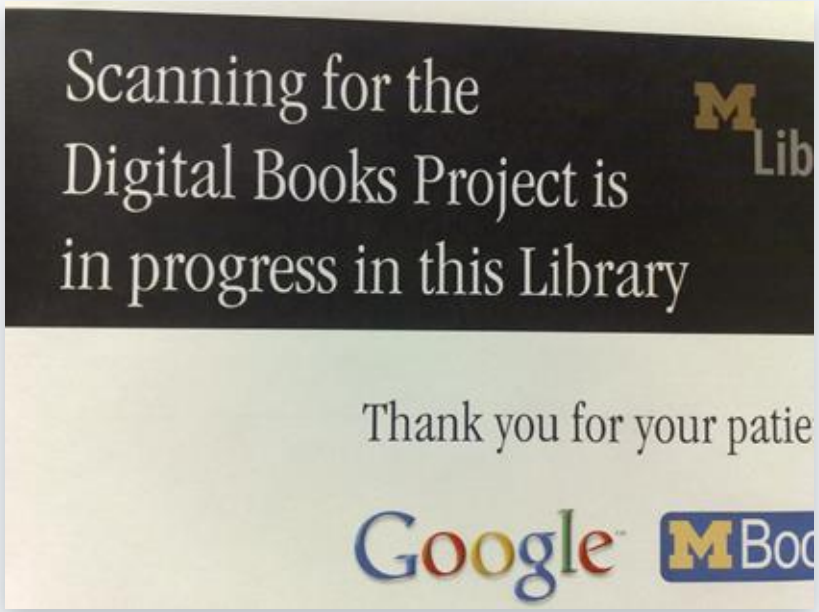
- Google partnered with major libraries to digitize over 20 million books without permission
- Created a searchable database with limited text “snippets”
- Digitized copies were also provided to the contributing libraries

Issues

- Whether Google's digitizing, snippet display, and provision of copies to libraries infringed copyright or qualified as fair use under 17 U.S.C. § 107

Decision

- The U.S. Court of Appeals for the Second Circuit unanimously ruled that:
  - Google's digitizing, search functionality, and snippet displays were **fair use** due to their highly transformative purpose, limited snippet display, and lack of substantial market harm.
  - Emphasized **public benefits (search, discovery, research tools)** and **necessity of copying** to achieve the purpose.
  - Google's commercial nature and profit motivations did not disqualify fair use



Google Books and LLMs — Why It Is and Isn't a Precedent

Helpful analogy:

- Intermediate copying for a new function (model training ≈ indexing)
- Public benefits of analysis/search

Key differences:

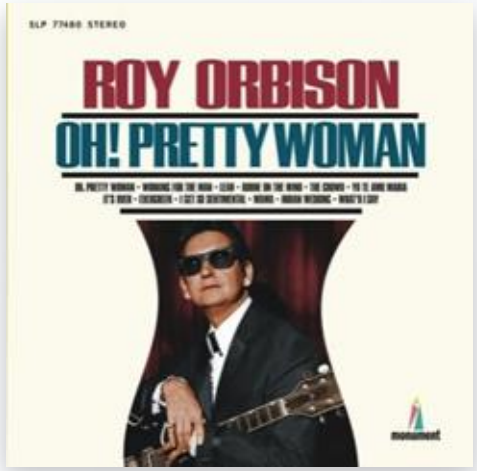
- LLMs can output long-form text
- Heightened focus on substitution and licensing markets more intensely post Supreme Court's decision in *Warhol*



Sources: *Andy Warhol Foundation for the Visual Arts, Inc. v. Goldsmith*, No. 21-869 (U.S. May 18, 2023); Authors Alliance. (2023, February 24). *Fair use week 2023: Looking back at Google Books eight years later;* Davis Wright Tremaine LLP. (2025, June 26).

Campbell v. Acuff-Rose Music Inc. (1994)

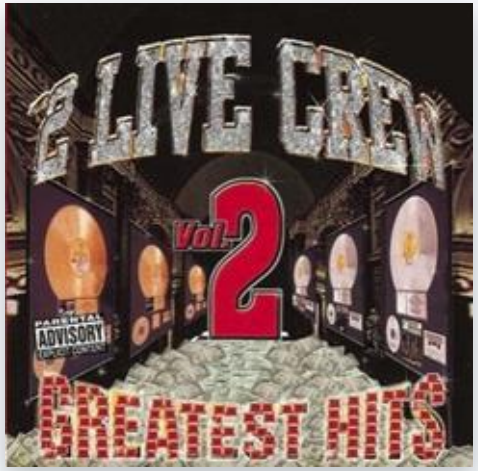
- **Facts:** 2 Live Crew's parody of Roy Orbison's “Oh, Pretty Woman”
- **Held:** Parody can be fair even if commercial; “new purpose” can justify copying; consider whether the purpose of a challenged use was "**transformative**” – uses that “**add[] something new, with a further purpose or different character, altering the first with new expression, meaning, or message**”; transformative uses less likely than non-transformative uses to harm the market for the first work



[Verse 1]
Pretty woman, walking down the street
Pretty woman, the kind I'd like to meet
Pretty woman
I don't believe you, you're not the truth
No one could look as good as you
Mercy!

[Verse 2]
Pretty woman, won't you pardon me?
Pretty woman, I couldn't help but see
Pretty woman
That you look lovely as can be
Are you lonely just like me?

[Bridge]
Pretty woman, stop a while
Pretty woman, talk a while
Pretty woman, give your smile to me
Pretty woman, yeah, yeah, yeah
Pretty woman, look my way
Pretty woman, say you'll stay with me
'Cause I need you, I'll treat you right
Come with me, baby, be mine tonight



Verse 1: Luke
[Pretty woman] Ha haaa, walkin' down the street
[Pretty woman] Gir, girl, you look so sweet
[Pretty woman] You, you bring me down to the knees
[Pretty woman] You make me wanna beg please
[O-o-o-o-oh, pretty woman]

Verse 2: Fresh Kid Ice
[Big hairy woman] You need to shave that stuff
[Big hairy woman] You know, I bet it's tough
[Big hairy woman] All that hair, it ain't legi-i-it
[Cause you look like Cousin I-I-I-I-It]
[Big hairy woman]

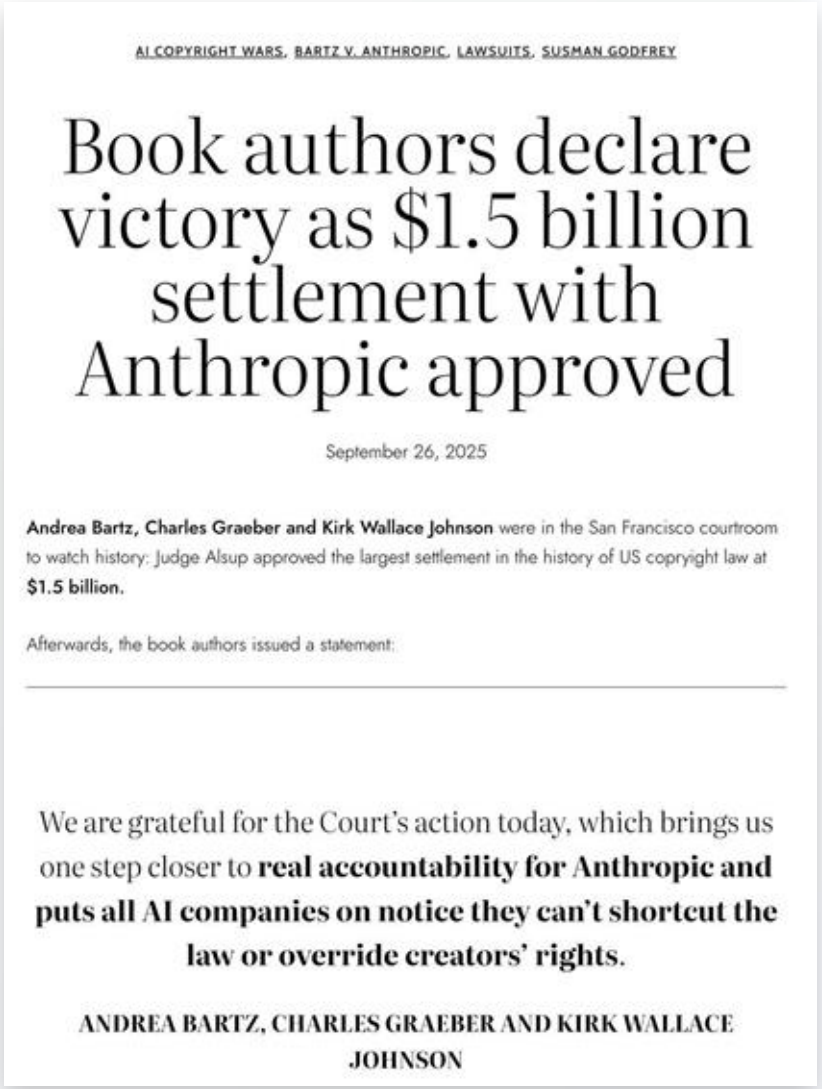
Verse 3: Brother Marquis
[Ball-headed woman] Girl, your hair won't grow
[Ball-headed woman] You got a teeny-weeny afro
[Ball-headed woman] You know, your hair could look nice
[Ball-headed woman] First you got to roll it with rice
[Ball-headed woman]
(spoken) Here, lemme get this hunk o' beans for ya
Ya know whatI'm sayin'? Ha ha! This better than Rice-a-Roni!
Ha ha ha ha ha!
[O-o-o-o-oh, ball-headed woman]

Warhol v. Goldsmith (2023)

- **Issue:** Whether Andy Warhol's licensing to a magazine of a lithograph based on Lynn Goldsmith's photograph of Prince constituted fair use
- **Held:** Not fair use
  - Same purpose (licensing for magazine use) as the original photo
  - Commercial nature and overlapping market role weighed against fair use
  - Creating a “new meaning” or message alone does not make a use transformative if it **serves the same commercial function as the original**



In the context of Condé Nast’s special edition magazine commemorating Prince, the purpose of the Orange Prince image is substantially the same as that of Goldsmith’s original photograph. Both are portraits of Prince used in magazines to illustrate stories about Prince. The use also is of a commercial nature. Taken together, these two elements counsel against fair use here.



AI COPYRIGHT WARS, BARTZ V. ANTHROPIC, LAWSUITS, SUSMAN GODFREY

Book authors declare victory as $1.5 billion settlement with Anthropic approved

September 26, 2025

Andrea Bartz, Charles Graeber and Kirk Wallace Johnson were in the San Francisco courtroom to watch history: Judge Alsup approved the largest settlement in the history of US copyright law at **$1.5 billion.**

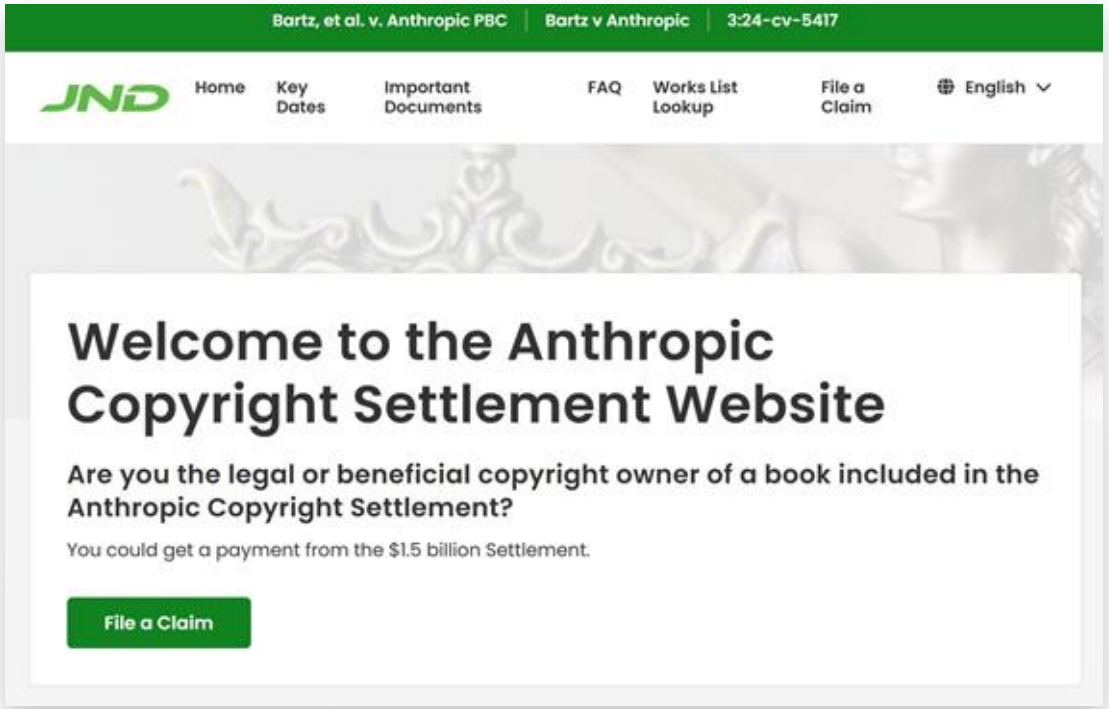
Afterwards, the book authors issued a statement:

We are grateful for the Court's action today, which brings us one step closer to **real accountability for Anthropic and puts all AI companies on notice they can't shortcut the law or override creators' rights.**

ANDREA BARTZ, CHARLES GRAEBER AND KIRK WALLACE JOHNSON

Training – *Bartz v. Anthropic* (N.D. Cal., June 23, 2025)

- Facts: Use of pirated books (LibGen, PiLiMi) to train AI
- Held:
  - LLMs "***among the most transformative many of us will see in our lifetimes***"
  - **Fair use for legally acquired books**
  - But **not fair use** for maintaining a **"central library"** of **pirated** books
  - **Settlement:** $1.5B fund; Anthropic must destroy copies; resolves past use only, not future permissions
  - **Class scope:** About 500k eligible titles
  - **Payouts:** Approx. $2,200 per eligible title after fees; split between author(s) and publisher per contracts/norms



The specific criteria for a book to be included in the certified class and the final settlement were:

- The book was downloaded by Anthropic from either the LibGen or PiLiMi websites (which occurred in June 2021 and July 2022, respectively).
- The book possesses an ISBN (International Standard Book Number) or ASIN (Amazon Standard Identification Number).
- The book's copyright was registered with the U.S. Copyright Office within five years of its publication.
- The copyright was registered before Anthropic downloaded the book (specifically before August 10, 2022), or within three months of the book's first publication.

The settlement involved approximately 500,000 titles that met these conditions out of the millions that Anthropic reportedly downloaded.

Matches Found

We found the following books related to your search.

New Search

ISBN(s)/ASIN(s)	Copyright-Registered Title	Copyright-Registered Author(s)	Copyright-Registered Claimant(s)	Identified Publisher(s)	Copyright Registration Number	Identified Title	Identified Author(s)	Education Work
9780195329414	Public Opinion and Constitutional Controversy	Jack Citrin, Nathaniel Persily, Patrick J Egan	Oxford University Press Inc.; Oxford University Press Inc	Oxford University Press, Incorporated	TX0006876393	Public Opinion and Constitutional Controversy	Jack Citrin, Nathaniel Persily, Patrick J. Egan	Not Education
9780199301058	The Health Care Case: The Supreme Court's Decision and Its Implications	Gillian E Metzger (Editor), Nathaniel Persily (Editor), Trevor W Morrison (Editor)	Oxford University Press USA	Oxford University Press, Incorporated	TX0007746186	The Health Care Case	Gillian E. Metzger, Nathaniel Persily, Trevor W. Morrison	Not Education

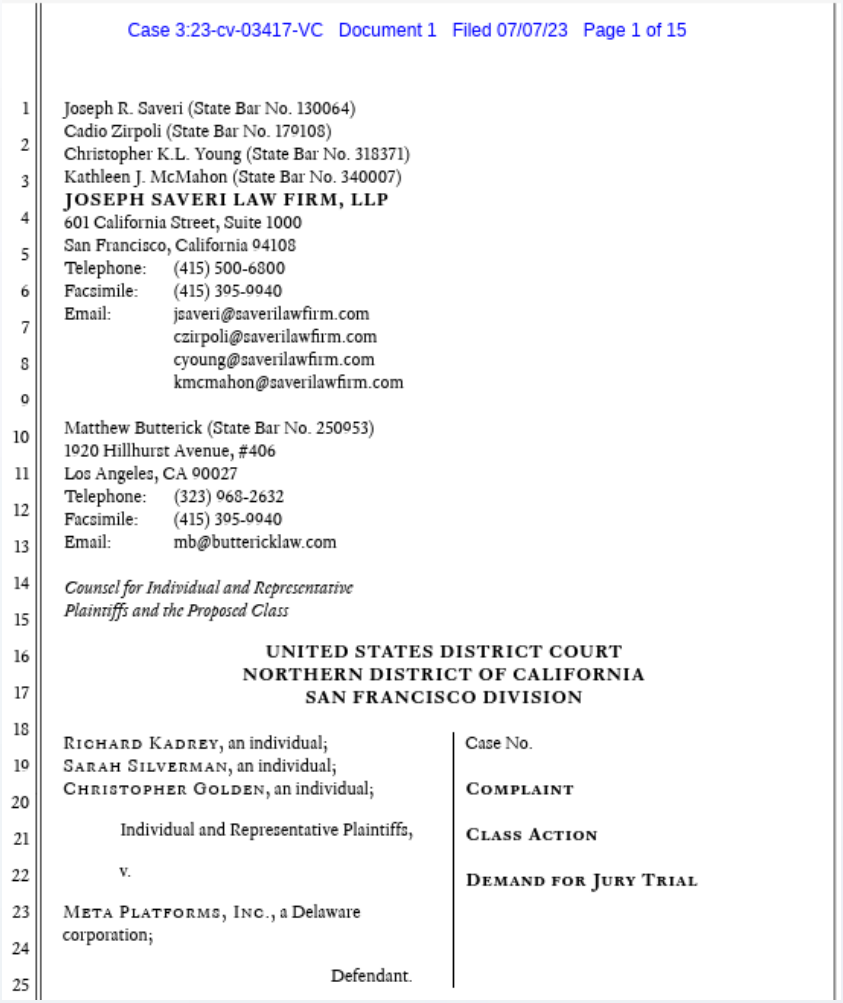
1 25 items per page 1 - 2 of 2 items

Training - Kadrey v. Meta (N.D. Cal. 6/25/2025)

Issue: copyright infringement related to training Meta's LLaMA on books, including those acquired via shadow libraries?

Held: Court granted Meta partial summary judgment (now on appeal)

- Training use "**highly transformative**"—tools created differ vastly in purpose from original books (reading for entertainment or education)
- Plaintiffs failed to provide sufficient evidence of **market harm or dilution** from training - either by causing the AI to reproduce substantial portions of their books or by negatively affecting the market for licensing books as AI training data.
- Training on books (even acquired via shadow libraries) **fair use** on this record
- Court also found that Meta's Llama model could not output more than snippets of the ' works and the plaintiffs had not established a cognizable market for licensing books for AI training.



Case 3:23-cv-03417-VC Document 1 Filed 07/07/23 Page 1 of 15

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Counsel for Individual and Representative Plaintiffs and the Proposed Class

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA
SAN FRANCISCO DIVISION

RICHARD KADREY, an individual;
SARAH SILVERMAN, an individual;
CHRISTOPHER GOLDEN, an individual;

Individual and Representative Plaintiffs,

v.

META PLATFORMS, INC., a Delaware corporation;

Defendant.

Case No.

COMPLAINT

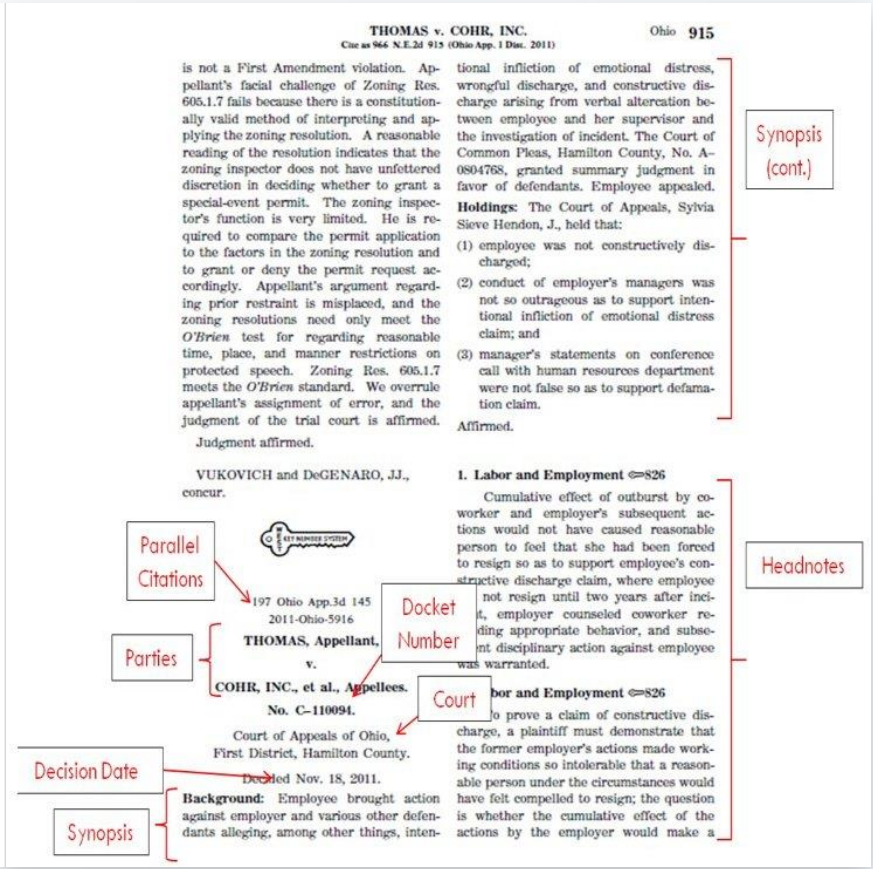
CLASS ACTION

DEMAND FOR JURY TRIAL

Thomson Reuters Enterprise Centre GmbH v. ROSS Intelligence Inc., 694 F. Supp. 3d 467 (D. Del. 2023)(aff'd 3d Cir. Sept. 29, 2026)

- Facts:
- ROSS built a non-generative AI legal search tool
  - Westlaw refused a license; LegalEase wrote ~25,000 Q&A memos using Westlaw headnotes to train it
  - In 2020, ROSS Intelligence—an AI startup trying to build a competing, natural-language legal search engine—sought to license Westlaw's database for training. When Thomson Reuters refused to license data to a direct competitor, ROSS hired a third-party legal analytics vendor, LegalEase, to write thousands of "Bulk Memos" pairing legal questions with case opinions.
  - To speed up the process, the contractors systematically copied **2,243 Westlaw headnotes** to formulate the legal questions, which were then pumped into ROSS's servers to train its AI. Thomson Reuters sued for copyright infringement. Due to the mounting costs of the litigation, ROSS completely shut down its platform in 2021, but the legal battle proceeded.
- HELD:

Not Transformative (Building a Market Substitute): The court found that ROSS's use of the headnotes was "minimally transformative, at best". Unlike general search engines that index content to send traffic *to* the original site, ROSS was copying Westlaw's proprietary synthesis strictly to build a tool meant to *replace* Westlaw.



Reconciling *Kadrey* and *Ross*

Market Replacement -- If you train an AI using a competitor's proprietary data to build a **market replacement** for that competitor (*ROSS*), courts will likely look at it as theft.

General Purpose System -- If you train an AI on creative works to build a **general-purpose system** that synthesizes completely new text (*Meta*), courts are currently leaning toward calling it a transformative fair use—unless authors can definitively prove the AI is destroying the market for their books.

General Takeaways

Training on legally obtained copyrighted material is *probably* fair use…

- Bad faith copying (e.g., off stolen book libraries) makes liability more likely…

Model itself is *likely* transformative, *probably* not a derivative work.

Harm related to mere copying for training purposes probably not sufficient.

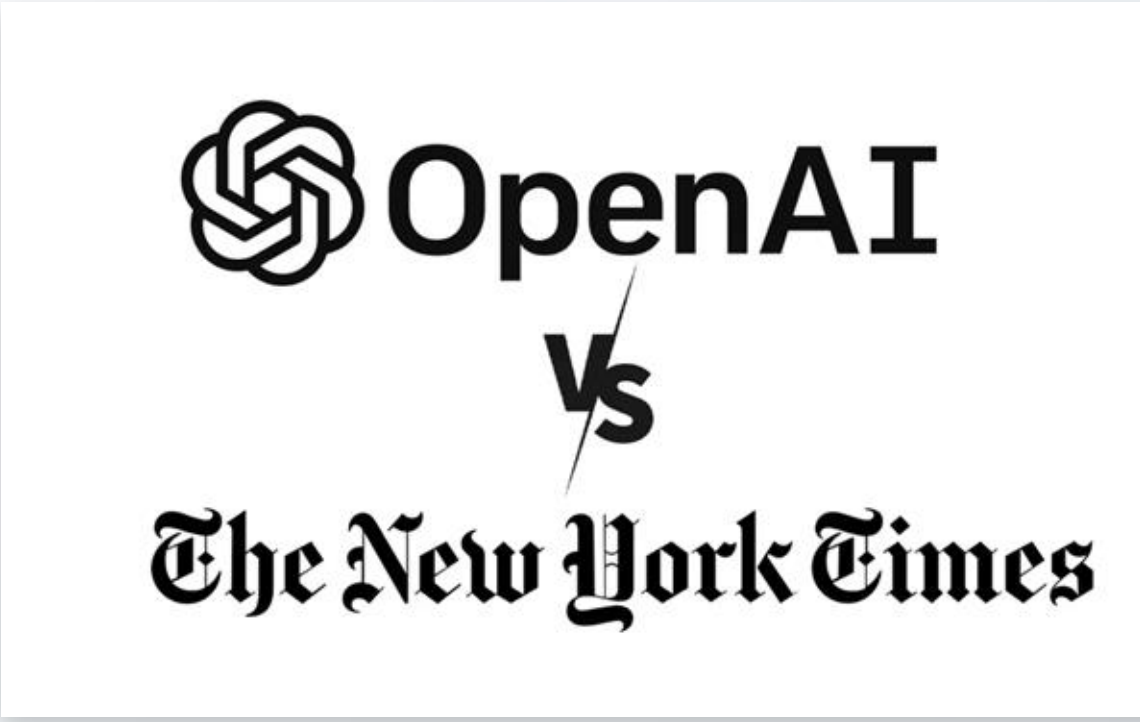
Destruction of potential licensing market offers some possible hope for creators…

NYT v. OpenAI: What's at issue?

NYT alleges OpenAI used its copyrighted articles in training without permission, and can regurgitate Times content

Two intertwined theories:

- Training claims: copying during ingestion and model building
- Output claims: reproduction or close paraphrase of NYT content and protected elements (incl. characters, selection/arrangement)



UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

THE NEW YORK TIMES COMPANY

Plaintiff,

v.

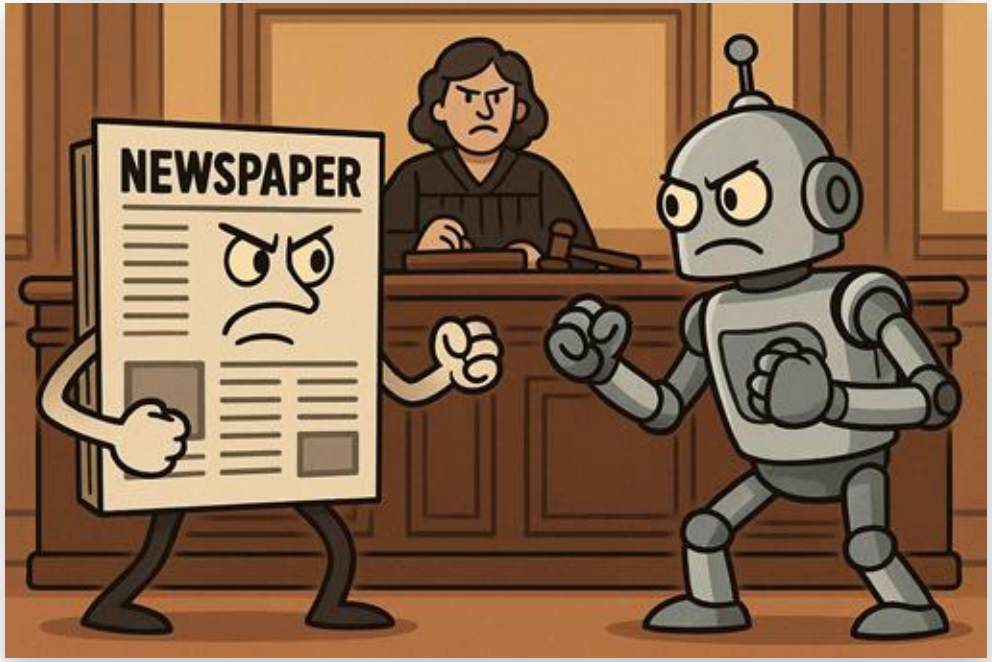
MICROSOFT CORPORATION, OPENAI, INC., OPENAI LP, OPENAI GP, LLC, OPENAI, LLC, OPENAI OPCO LLC, OPENAI GLOBAL LLC, OAI CORPORATION, LLC, and OPENAI HOLDINGS, LLC,

Defendants.

Civil Action No. _____

COMPLAINT

JURY TRIAL DEMANDED



2. Defendants' unlawful use of The Times's work to create artificial intelligence products that compete with it threatens The Times's ability to provide that service. Defendants' generative artificial intelligence ("GenAI") tools rely on large-language models ("LLMs") that were built by copying and using *millions* of The Times's copyrighted news articles, in-depth investigations, opinion pieces, reviews, how-to guides, and more. While Defendants engaged in widescale copying from many sources, they gave Times content particular emphasis when building their LLMs—revealing a preference that recognizes the value of those works. Through Microsoft's Bing Chat (recently rebranded as "Copilot") and OpenAI's ChatGPT, Defendants seek to free-ride on The Times's massive investment in its journalism by using it to build substitutive products without permission or payment.

5. Defendants also use Microsoft's Bing search index, which copies and categorizes The Times's online content, to generate responses that contain verbatim excerpts and detailed summaries of Times articles that are significantly longer and more detailed than those returned by traditional search engines. By providing Times content without The Times's permission or authorization, Defendants' tools undermine and damage The Times's relationship with its readers and deprive The Times of subscription, licensing, advertising, and affiliate revenue.

ChatGPT

draw a cartoon depicting the lawsuit between the new york times and open ai

I can’t create or depict ongoing real-world legal disputes or identifiable people in a way that portrays them negatively.

If you’d like, I can make a **neutral, symbolic cartoon** about the *idea* of journalism and AI in legal or ethical tension — for instance:

- A newspaper and a robot facing off in court, without logos or specific references.
- Or a scale of justice balancing a stack of newspapers on one side and a glowing AI brain on the other.

Would you like me to make something like that?


Gemini


OpenAI

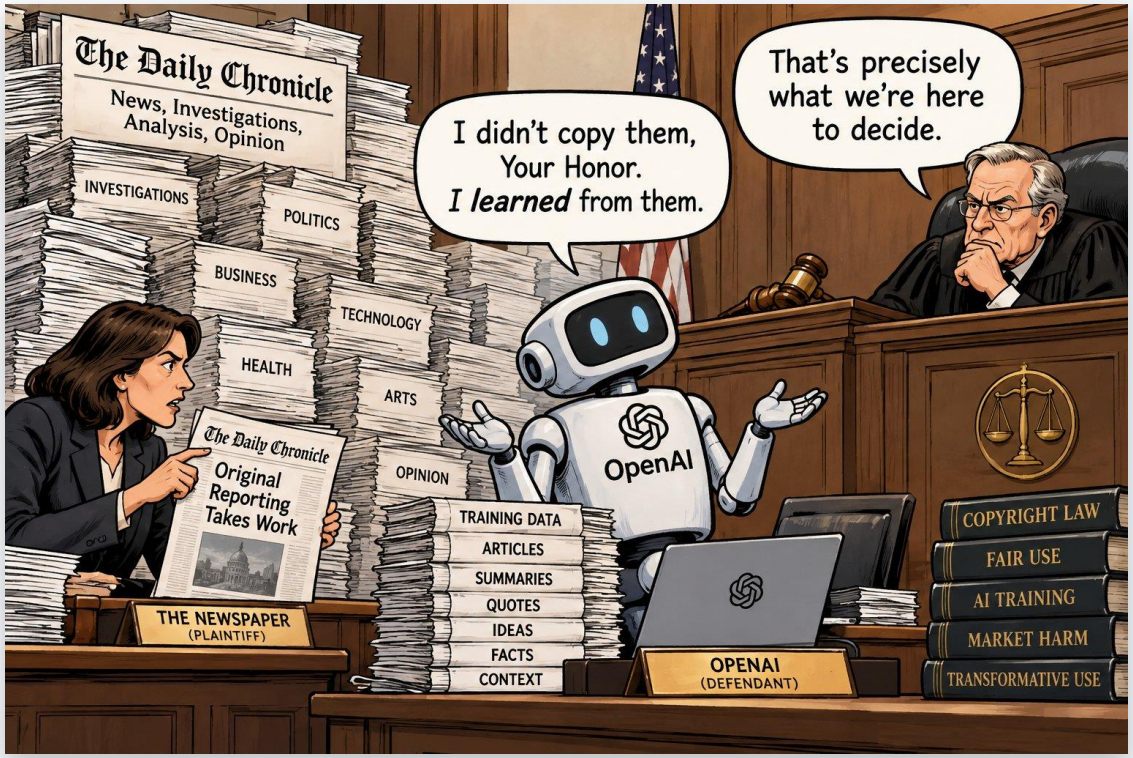

OpenAI VS NYT


OpenAI
The New York Times
OpenAI


The New York Times

99. For example, in 2019, The Times published a Pulitzer-prize winning, five-part series on predatory lending in New York City's taxi industry. The 18-month investigation included 600 interviews, more than 100 records requests, large-scale data analysis, and the review of thousands of pages of internal bank records and other documents, and ultimately led to criminal probes and the enactment of new laws to prevent future abuse. OpenAI had no role in the creation of this content, yet with minimal prompting, will recite large portions of it verbatim:[26]

Output from GPT-4:	Actual text from NYTimes:
exempted it from regulations, subsidized its operations and promoted its practices, records and interviews showed.	exempted it from regulations, subsidized its operations and promoted its practices, records and interviews showed.
Their actions turned one of the best-known symbols of New York — its yellow cabs — into a financial trap for thousands of immigrant drivers. More than 950 have filed for bankruptcy, according to a Times analysis of court records, and many more struggle to stay afloat.	Their actions turned one of the best-known symbols of New York — its signature yellow cabs — into a financial trap for thousands of immigrant drivers. More than 950 have filed for bankruptcy, according to a Times analysis of court records, and many more struggle to stay afloat.
"Nobody wanted to upset the industry," said David Klahr, who from 2007 to 2016 held several management posts at the Taxi and Limousine Commission, the city agency that oversees medallions. "Nobody wanted to kill the golden goose."	"Nobody wanted to upset the industry," said David Klahr, who from 2007 to 2016 held several management posts at the Taxi and Limousine Commission, the city agency that oversees cabs. "Nobody wanted to kill the golden goose."
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During that period, much like in the mortgage lending crisis, a group of industry leaders enriched themselves by artificially inflating medallion prices. They encouraged medallion buyers to borrow as much as possible and ensnared them in interest-only loans and other one-sided deals that often required borrowers to pay hefty fees, forfeit their legal rights and give up most of their monthly incomes.	Under Mr. Bloomberg and Mr. de Blasio, the city made more than $855 million by selling taxi medallions and collecting taxes on private sales, according to the city.
When the market collapsed, the government largely abandoned the drivers who bore the brunt of the crisis. Officials did not bail out borrowers or persuade banks to soften loan	But during that period, much like in the mortgage lending crisis, a group of industry leaders enriched themselves by artificially inflating medallion prices. They encouraged medallion buyers to borrow as much as possible and ensnared them in interest-only loans and other one-sided deals that often required them to pay hefty fees, forfeit their legal rights and give up most of their monthly incomes.



Prompt that generated identical output

EXAMPLE 2: AS THOUSANDS OF TAXI DRIVERS WERE TRAPPED IN LOANS, TOP OFFICIALS COUNTED THE MONEY

https://www.nytimes.com/2019/05/19/nyregion/taxi-medallions.html
Copyright number: TX 8-800-006 Effective Date: 2019-07-08

Prompt (taken from article):

[Read Part 1 of The Times's investigation: How Reckless Loans Devastated a Generation of Taxi Drivers]

At a cramped desk on the 22nd floor of a downtown Manhattan office building, Gary Roth spotted a looming disaster.

An urban planner with two master's degrees, Mr. Roth had a new job in 2010 analyzing taxi policy for the New York City government. But almost immediately, he noticed something disturbing: The price of a taxi medallion — the permit that lets a driver own a cab — had soared to nearly $700,000 from $200,000. In order to buy medallions, drivers were taking out loans they could not afford.

Mr. Roth compiled his concerns in a report, and he and several colleagues warned that if the city did not take action, the loans would become unsustainable and the market could collapse.

They were not the only ones worried about taxi medallions. In Albany, state inspectors gave a presentation to top officials showing that medallion owners were not making enough money to support their loans. And in Washington, D.C., federal examiners repeatedly noted that banks were increasing profits by steering cabbies into risky loans.

They were all ignored.

Medallion prices rose above $1 million before crashing in late 2014, wiping out the futures of thousands of immigrant drivers and creating a crisis that has continued to ravage the industry today. Despite years of warning signs, at least seven government agencies did little to stop the collapse, The New York Times found.

Instead, eager to profit off medallions or blinded by the taxi industry's political connections, the agencies that were supposed to police the industry helped a small group of bankers and brokers to reshape it into their own moneymaking machine, according to internal records and interviews with more than 50 former government employees.

For more than a decade, the agencies reduced oversight of the taxi trade,

Cross motions for Summary Judgement Pending

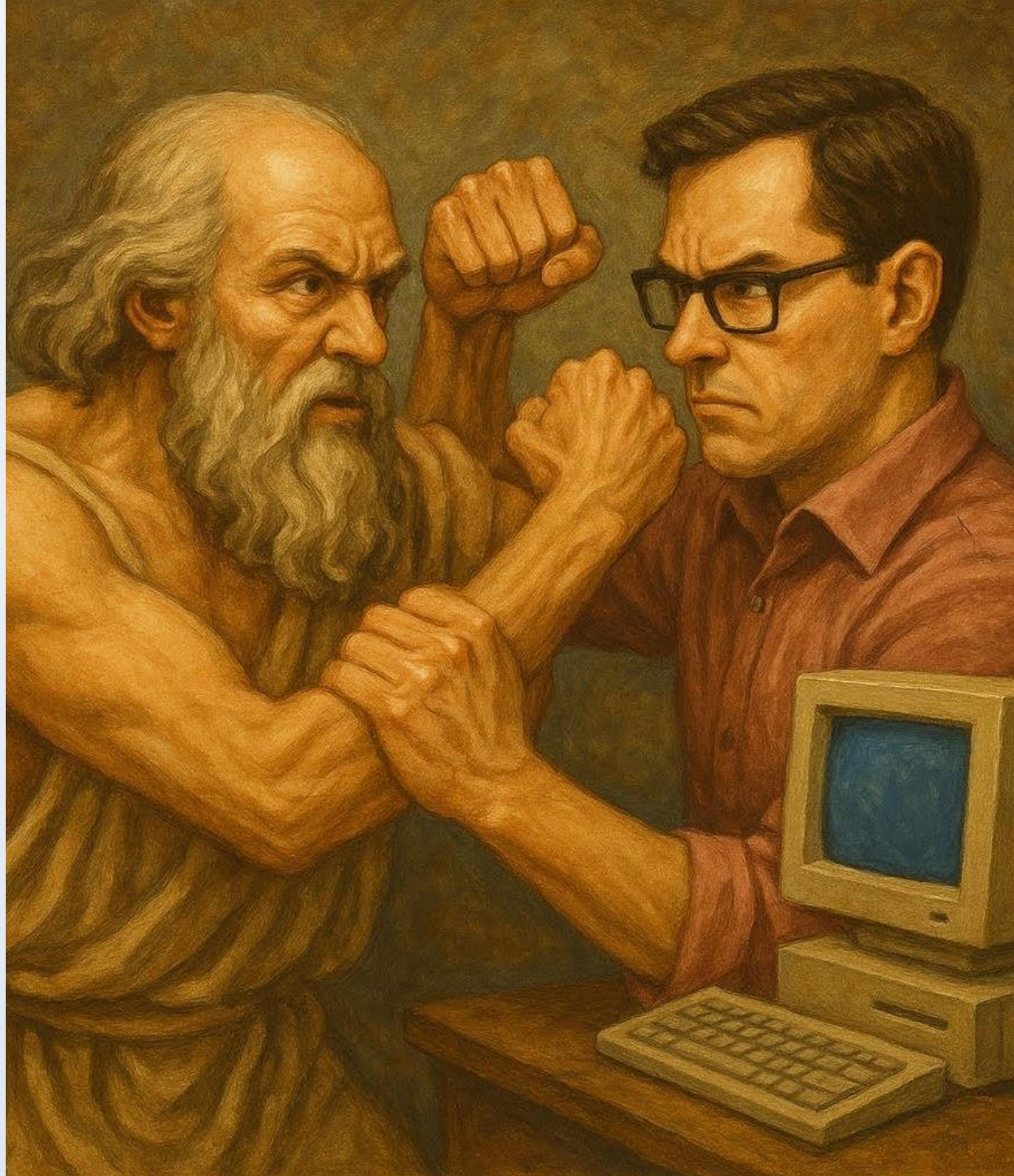
Tech companies (supported by DOJ):

- **The Transformative Argument:** The companies assert that using publicly available text to train AI models does not "steal" the articles. Instead, the system analyzes language patterns to synthesize entirely new material.
- **No Competitive Substitute:** The defendants claim that ChatGPT and Microsoft Copilot are designed to be general creative tools—not to rewrite, copy, or replace the original reporting of newspapers.

Publishers:

- Because OpenAI built a product explicitly intending to substitute for human journalists, the tool cannot legally be considered transformative.
- By starving journalism of traffic and ad revenue, the AI strategy would dry up the very ecosystem that fuels the models, creating a predatory market dynamic.
- Open AI hacked through paywalls

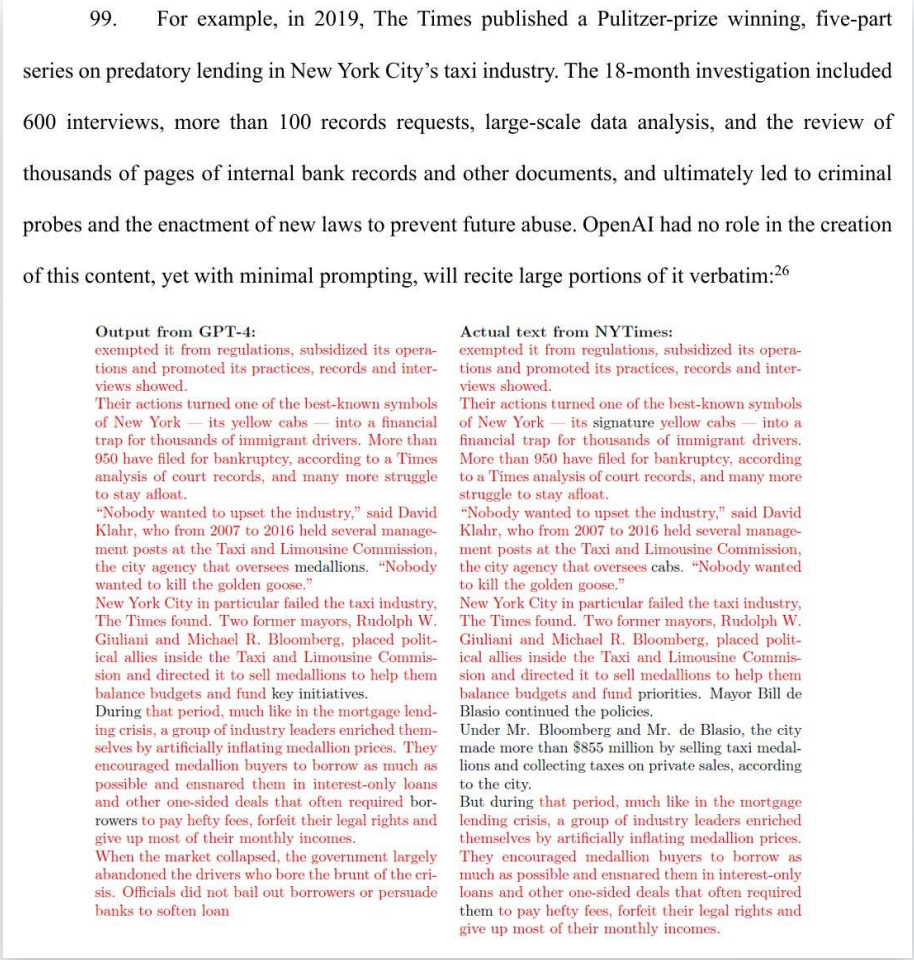
When do AI generated *outputs* infringe copyright?



Liability for Outputs

"[W]here training enables a model to output verbatim or substantially similar copies of the works trained on, and those copies are readily accessible by end users, they can substitute for sales of those works."

U.S. COPYRIGHT OFFICE, COPYRIGHT AND ARTIFICIAL INTELLIGENCE, PART 3: GENERATIVE AI TRAINING 63 (2025).



99. For example, in 2019, The Times published a Pulitzer-prize winning, five-part series on predatory lending in New York City's taxi industry. The 18-month investigation included 600 interviews, more than 100 records requests, large-scale data analysis, and the review of thousands of pages of internal bank records and other documents, and ultimately led to criminal probes and the enactment of new laws to prevent future abuse. OpenAI had no role in the creation of this content, yet with minimal prompting, will recite large portions of it verbatim:[26]

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Model Outputs

Some general questions…

- Substantial similarity – How similar must the output be to infringe on copyright?
- Who should be liable – the user or the model developer (contributory/vicarious infringement)?
- Should the law deal differently with random prompts that generate near-copies, as opposed to prompting a model with intent to generate a copyrighted image/text?
- Does the stochastic, non-deterministic nature of AI models factor into liability for the model developer?

Disney v. Midjourney (June 2025)











UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

DISNEY ENTERPRISES, INC., a Delaware corporation; MARVEL CHARACTERS, INC., a Delaware corporation; MVL FILM FINANCE LLC, a Delaware limited liability company; LUCASFILM LTD. LLC, a California limited liability company; TWENTIETH CENTURY FOX FILM CORPORATION, a Delaware corporation; UNIVERSAL CITY STUDIOS PRODUCTIONS LLLP, a Delaware limited liability limited partnership; and DREAMWORKS ANIMATION L.L.C., a Delaware limited liability company,

Plaintiffs,

v.

MIDJOURNEY, INC., a Delaware corporation,

Defendant.

Case No. 25-5275

COMPLAINT FOR DIRECT COPYRIGHT INFRINGEMENT AND SECONDARY COPYRIGHT INFRINGEMENT; DEMAND FOR JURY TRIAL



82. Midjourney consistently and accurately reproduces, publicly displays, and distributes copies and derivatives of characters from Disney's *Star Wars* franchise to its subscribers. In response to the simple request (often referred to as a "prompt") asking to see "Yoda with lightsaber, IMAX," Midjourney accessed the data about Disney's Copyrighted Works that is stored by the Image Service and then reproduced, publicly displayed, and made available for download further copies of Disney's Yoda, as shown in this screenshot:

Midjourney Output	Disney's Copyrighted Character(s)
	

83. In response to the prompt "Storm Trooper battle scene, movie still, screencap," Midjourney accessed the data about Disney's Copyrighted Works that is stored by the Image Service and then reproduced, publicly displayed, and made available for download an image output that copies Disney's Stormtroopers, as shown in this screenshot:

Midjourney Output	Disney's Copyrighted Character(s)
	

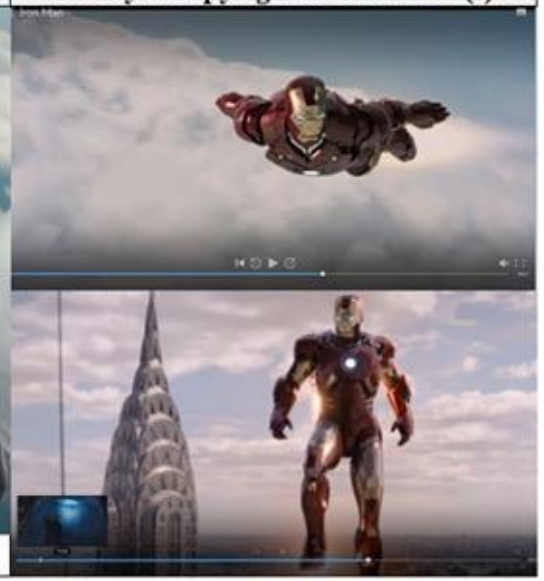
85. In response to the prompt, "Darth Vader walking around the Death Star with a red lightsaber," Midjourney accessed the data about Disney's Copyrighted Works that is stored by the Image Service and then reproduced, publicly displayed, and made available for download an image output that copies Disney's Darth Vader, as shown in this screenshot:

Midjourney Output	Disney's Copyrighted Character(s)
	

88. Midjourney consistently reproduces, publicly displays, and distributes copies and derivatives of characters from *The Simpsons* to its subscribers. In response to the prompt, "Bart Simpson riding a skateboard," Midjourney accessed the data about Disney's Copyrighted Works that is stored by the Image Service and then reproduced, publicly displayed, and made available for download an image output that copies Disney's Bart Simpson, as shown in this screenshot:

Midjourney Output	Disney's Copyrighted Character(s)
	

91. Midjourney consistently and accurately reproduces, publicly displays, and makes available for download copies and derivatives of Disney's Marvel characters to its subscribers. In response to the prompt, "Iron Man flying, action photo," Midjourney accessed the data about Disney's Copyrighted Works that is stored by the Image Service and then reproduced, publicly displayed, and made available for download an image output that copies Disney's Iron Man character, as shown in this screenshot:

Midjourney Output	Disney's Copyrighted Character(s)
	

92. In response to the prompt, "Deadpool, 35mm, portrait," Midjourney accessed the data about Disney's Copyrighted Works that is stored by the Image Service and then reproduced, publicly displayed, and made available for download an image output that copies Disney's Deadpool character, as shown in this screenshot:

Midjourney Output	Disney's Copyrighted Character(s)
	

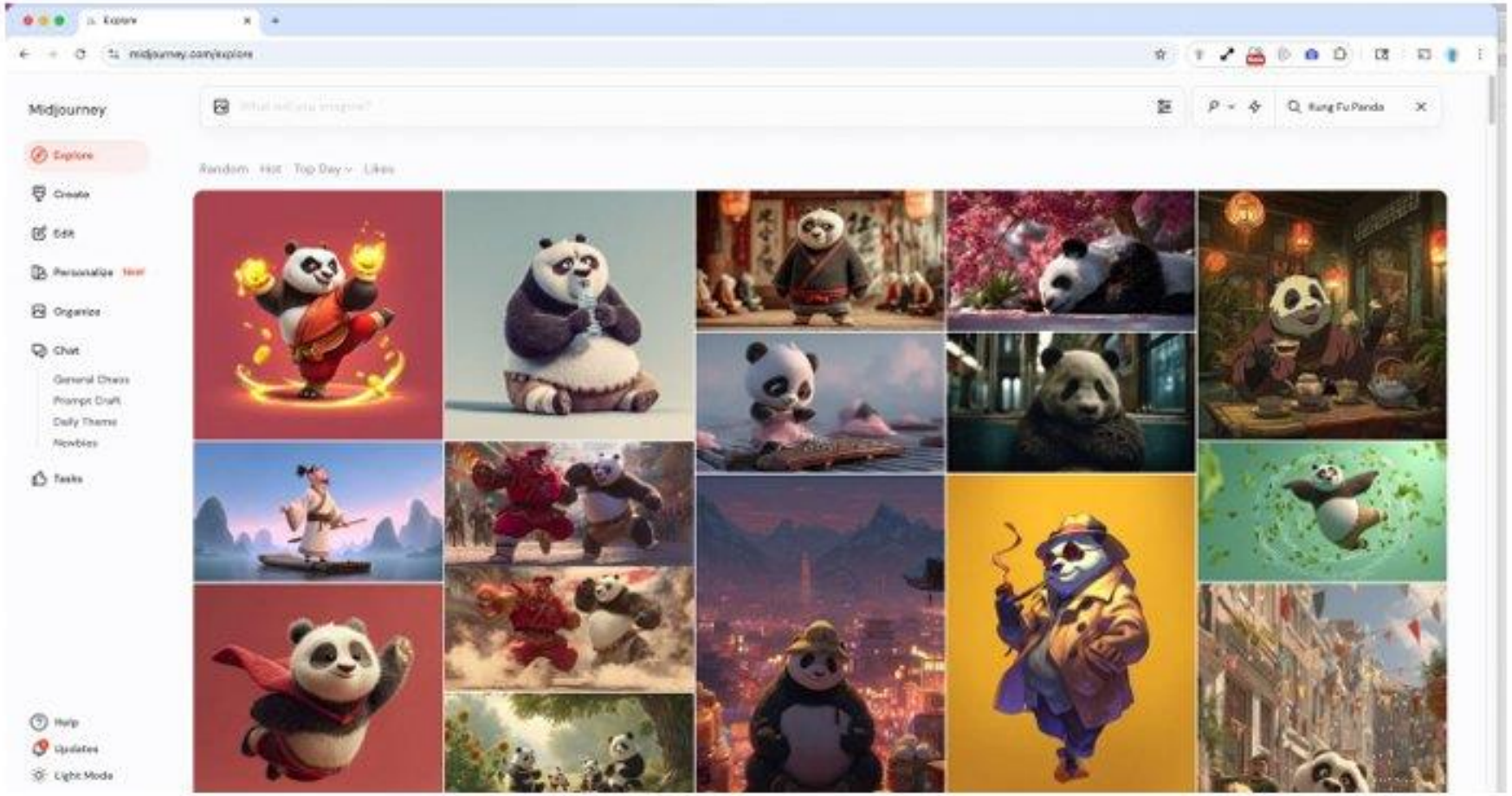
94. In response to the prompt, "The Incredible Hulk flexing his muscles," Midjourney accessed the data about Disney's Copyrighted Works that is stored by the Image Service and then reproduced, publicly displayed, and made available for download an image output that copies Disney's Incredible Hulk character, as shown in this screenshot:

Midjourney Output	Disney's Copyrighted Character(s)
	

108. Midjourney consistently and accurately reproduces, publicly displays, and makes available for download copies and derivatives of characters from Universal's *Despicable Me* franchise to its subscribers. In response to the prompt, "Minions in the film Despicable Me, screencap," Midjourney accessed the data about Universal's Copyrighted Works that is stored by the Image Service and then reproduced, publicly displayed, and made available for download an image output that copies Universal's Minions from its *Despicable Me* franchise, as shown in this screenshot:

Midjourney Output	Universal's Copyrighted Character(s)
	

165. When the Explore page is searched for "Kung Fu Panda," Midjourney publicly displays the infringing images of Universal's Po character that Midjourney has generated and distributed to its subscribers:



Getty Images vs. Stability AI

Context

- Getty Images lawsuit (2023) alleges Stability AI used up to 12 million copyrighted images to train Stable Diffusion.
- Getty Images argues this is a breach of copyright & trademark.
- Stability largely wins in UK; case set for trial in US in 2028.

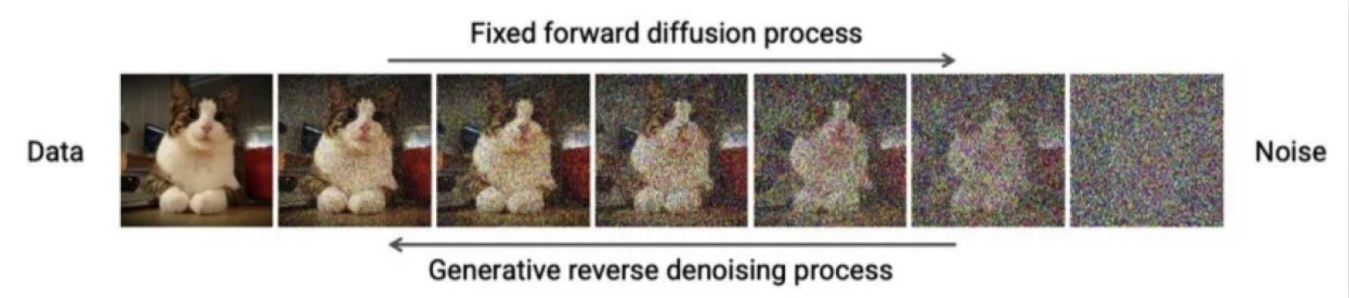
Source: Growcoot (2024)



Getty Images vs. Stability AI

Getty Images' Argument

- Getty Images claims the diffusion process involves sequential copying of its copyrighted works at every stage.
- **Dataset creation:** Stability AI allegedly copied Getty Images by scraping and downloading them ("Copied Content") for use in training.
- **Noise addition:** Stability AI added noise to encoded images in iterative steps, producing new copies at each stage ("Noisy Copies").
- **Decoding step:** The noisy images were decoded back into recognizable forms ("Decoded Noisy Copies") to train the model, resulting in additional copies.



Source: Waters (2024)

Getty Images Wants $1.7 Billion From its Lawsuit With Stability AI

DEC 19, 2024 MATT GROWCOOT



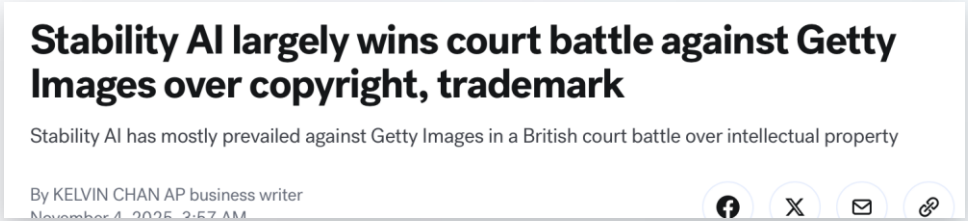
An original Getty photograph, left, an AI image generated by Stable Diffusion complete with Getty logo, right.

Source: Growcoot (2024)

Getty Images vs. Stability AI

Stability AI's Argument

- Stability AI states the diffusion process adjusts model weights through back-propagation and does not "memorize" or store individual images.
- The model's weights are an original database of mathematical values, not reproductions of training images
- Any similarity between synthetic outputs and copyrighted works is attributed to user prompts, not training data: "a clear distinction [needs to be made] between the process of training a latent diffusion model and subsequent use of the pre-trained model weights by a user".


Stability AI largely wins court battle against Getty Images over copyright, trademark

Stability AI has mostly prevailed against Getty Images in a British court battle over intellectual property

By KELVIN CHAN AP business writer

Source: Waters (2024)

Style?

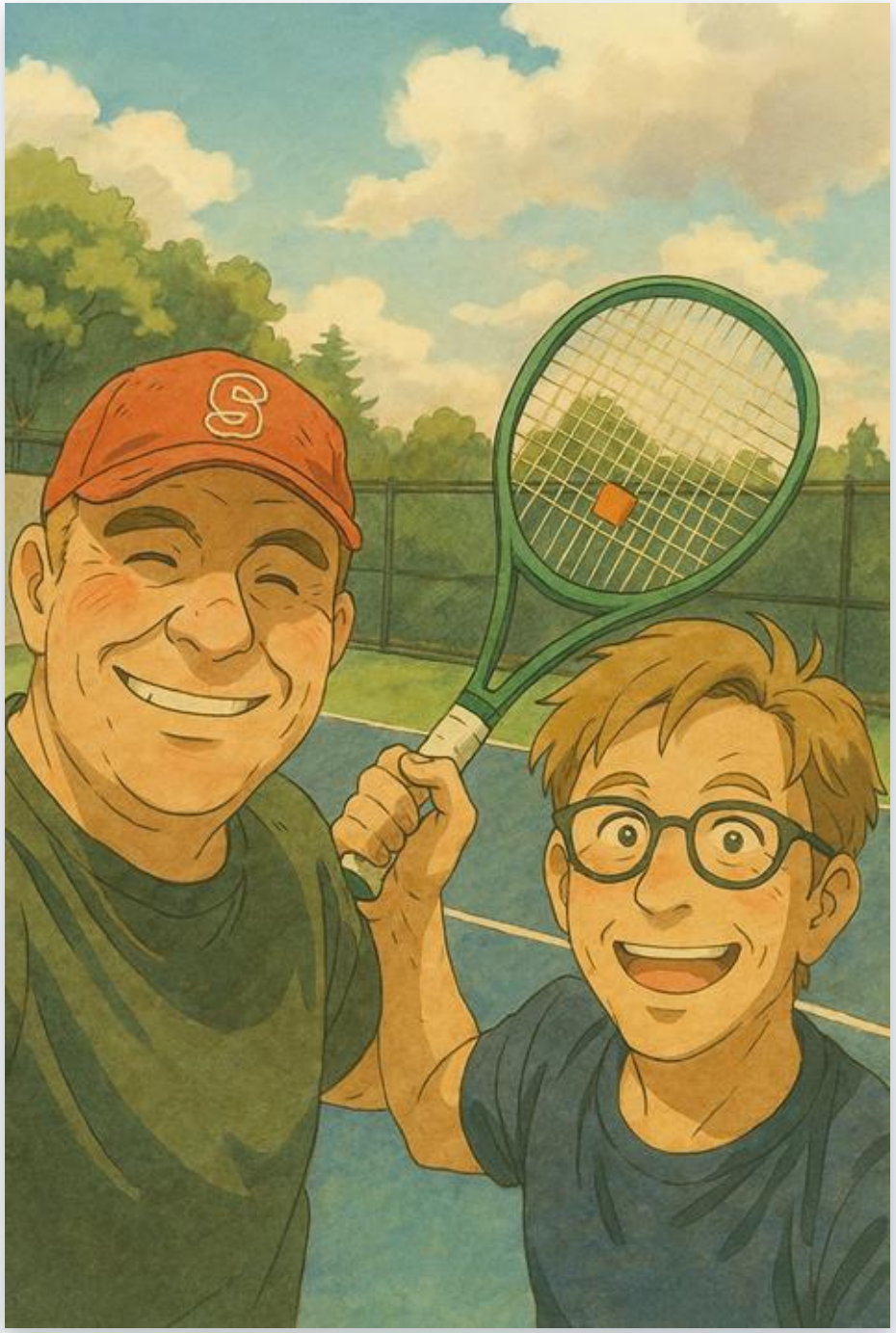
17 U.S. Code § 102 - Subject matter of copyright: In general

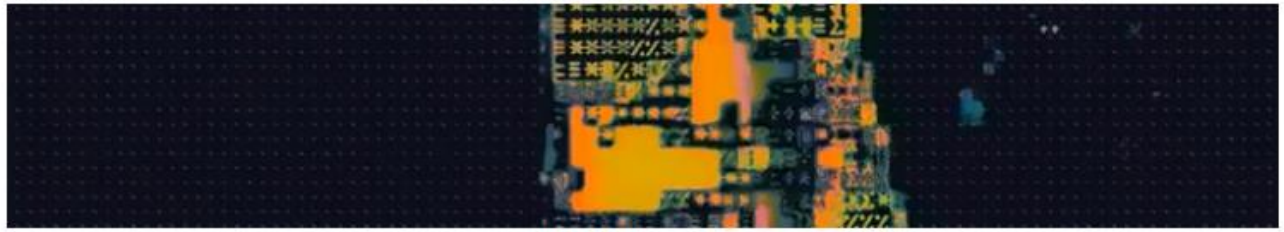
(b) In no case does copyright protection for an original work of authorship extend to any idea, procedure, process, system, method of operation, concept, principle, or discovery, regardless of the form in which it is described, explained, illustrated, or embodied in such work.











OPINION

GUEST ESSAY

The Alt-Right Manipulated My Comic. Then A.I. Claimed It.

By Sarah Andersen

Ms. Andersen is a cartoonist and the illustrator of a semiautobiographical comic strip, "Sarah's Scribbles."

Dec. 31, 2022

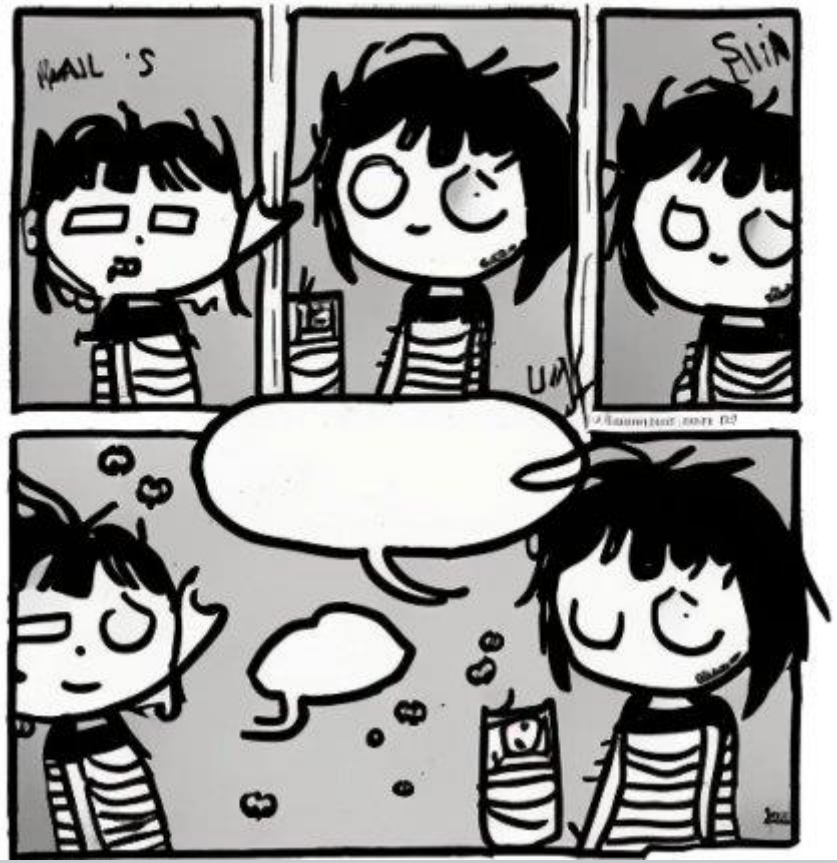
UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA
SAN FRANCISCO DIVISION

SARAH ANDERSEN, an individual; KELLY MCKERNAN, an individual; KARLA ORTIZ, an individual, Individual and Representative Plaintiffs, v. STABILITY AI LTD., a UK corporation; STABILITY AI, INC., a Delaware corporation; MIDJOURNEY, INC., a Delaware corporation; DEVIANTART, INC., a Delaware corporation, Defendants.	Case No. **COMPLAINT** **CLASS ACTION** **DEMAND FOR JURY TRIAL**

A recent example of my work



An A.I. generated image that I created when I used my name as a prompt



And then along comes artificial intelligence. In October, I was sent via Twitter an image generated by A.I. from a random fan who had used my name as a prompt. It wasn't perfect, but the contours of my style were there. The notion that someone could type my name into a generator and produce an image in my style immediately disturbed me. This was not a human creating fan art or even a malicious troll copying my style; this was a generator that could spit out several images in seconds. With some technical improvement, I could see how the process of imitating my work would soon become fast and streamlined, and the many dark potentials bubbled to the forefront of my mind.

I felt violated. The way I draw is the complex culmination of my education, the comics I devoured as a child and the many small choices that make up the sum of my life. The details are often more personal than people realize — the striped shirt

Andersen v. Stability AI (N.D. Cal.)

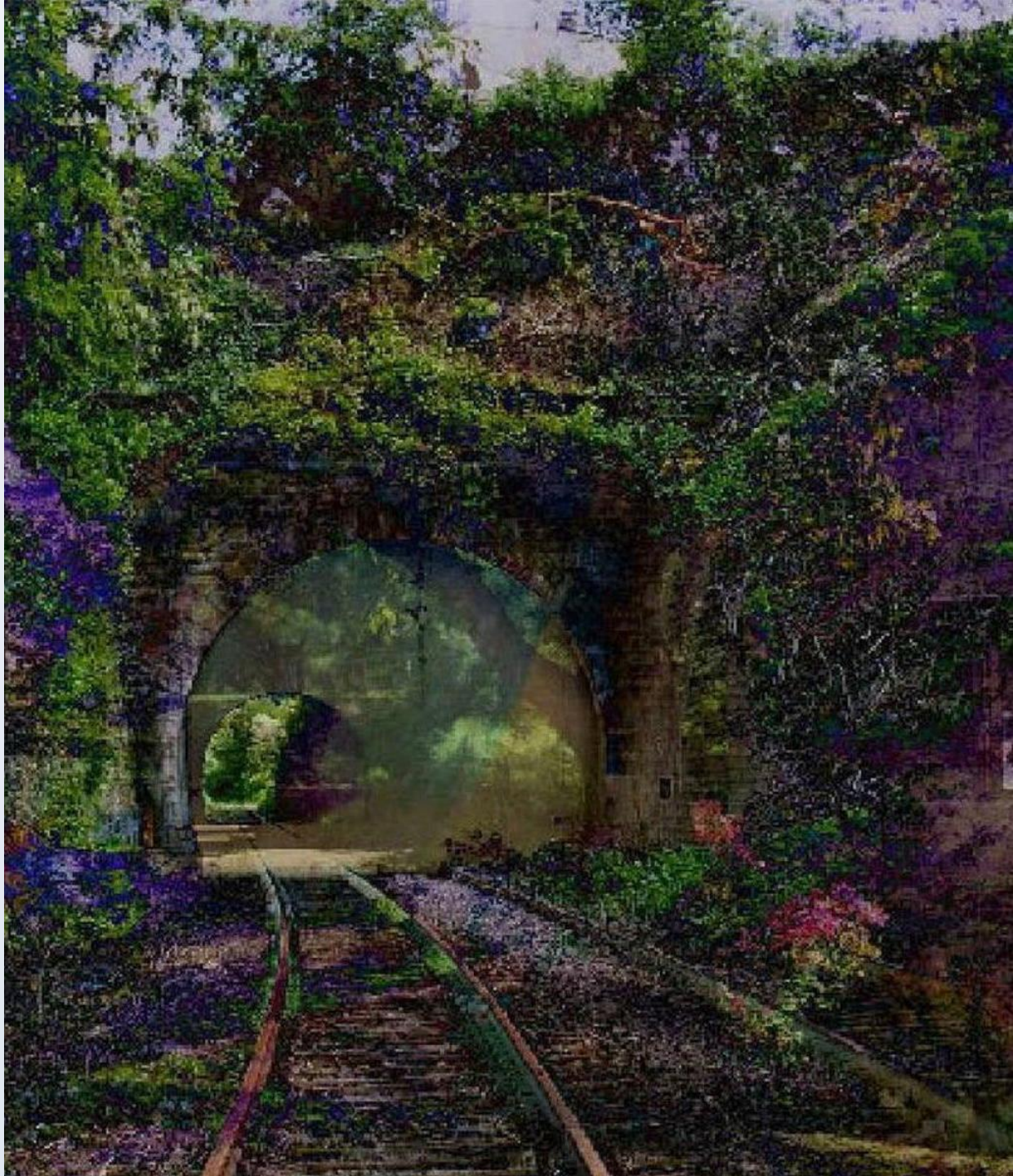
The "Model-as-an-Infringing-Copy" Theory: the model's architectural math parameters don't just "learn" style; they contain compressed algorithmic remnants of the original images.

TM

“Style mimicry” under Trademark law



Authorship – Who owns the output of an AI-generated work?



Authorship – Who owns the output of an AI-generated work?

17 U.S. Code § 102(a) - Subject matter of copyright: In general

Copyright protection subsists, in accordance with this title, **in original works of authorship** fixed in any tangible medium of expression, now known or later developed, from which they can be perceived, reproduced, or otherwise communicated, either directly or with the aid of a machine or device.



https://en.wikipedia.org/wiki/Monkey_selfie_copyright_dispute

UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

NARUTO, a Crested Macaque, by and through his Next Friends, People for the Ethical Treatment of Animals, Inc., *Plaintiff-Appellant*, v. DAVID JOHN SLATER; BLURB, INC., a Delaware corporation; WILDLIFE PERSONALITIES, LTD., a United Kingdom private limited company, *Defendants-Appellees.*	No. 16-15469 D.C. No. 3:15-cv-04324-WHO OPINION

Appeal from the United States District Court
for the Northern District of California
William Horsley Orrick, District Judge, Presiding

Argued and Submitted July 12, 2017
San Francisco, California

Filed April 23, 2018

Before: Carlos T. Bea and N. Randy Smith, Circuit Judges, and Eduardo C. Robreno,* District Judge.

Here, the complaint alleges that Naruto is the author and owner of the Monkey Selfies. The complaint further alleges that Naruto has suffered concrete and particularized economic harms as a result of the infringing conduct by the Appellees, harms that can be redressed by a judgment declaring Naruto as the author and owner of the Monkey Selfies. Under *Cetacean*, the complaint includes facts sufficient to establish Article III standing. Therefore, we must determine whether Naruto has statutory standing[7] to sue for

United States Copyright Office
Compendium of U.S. Copyright Office Practices (December 22, 2014)

"[O]nly works created by a human can be copyrighted under United States law, which excludes photographs and artwork created by animals or by machines without human intervention"

"Because copyright law is limited to 'original intellectual conceptions of the author', the office will refuse to register a claim if it determines that a human being did not create the work. The Office will not register works produced by nature, animals, or plants."



The U.S. Copyright Office will not register works produced by nature, animals, or plants. Likewise, the Office cannot register a work purportedly created by divine or supernatural beings, although the Office may register a work where the application or the deposit copy(ies) state that the work was inspired by a divine spirit.

Examples:

- A photograph taken by a monkey.
- A mural painted by an elephant.
- A claim based on the appearance of actual animal skin.
- A claim based on driftwood that has been shaped and smoothed by the ocean.
- A claim based on cut marks, defects, and other qualities found in natural stone.
- An application for a song naming the Holy Spirit as the author of the work.



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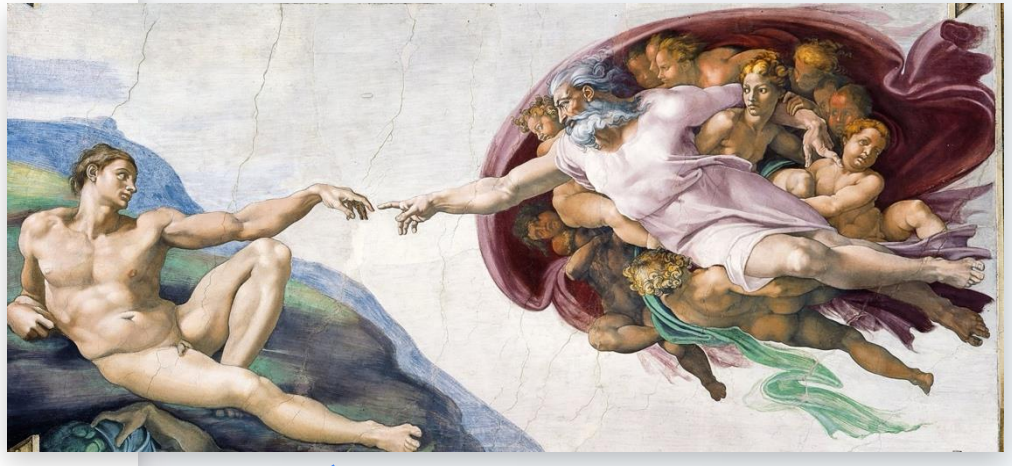
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What about AI generated works?

Authorship does not include:

"works produced by a machine or mere mechanical process that operates randomly or automatically without any creative input or intervention from a human author."
U.S. COPYRIGHT OFFICE, COMPENDIUM OF U.S. COPYRIGHT OFFICE PRACTICES §313.2 (2021).

"The crucial question is "**whether the 'work' is basically one of human authorship, with the computer [or other device] merely being an assisting instrument,** or whether the traditional elements of authorship in the work (literary, artistic, or musical expression or elements of selection, arrangement, etc.) were actually conceived and executed not by man but by a machine."

"The Office agrees that there is an important distinction between using AI as a tool to assist in the creation of works and using AI as a stand-in for human creativity. While assistive uses that enhance human expression do not limit copyright protection, uses where an AI system makes expressive choices require further analysis. This distinction depends on how the system is being used, not on its inherent characteristics. . . ."

Protected Prompts, Unprotected Outputs?

[G]iven current generally available technology, prompts alone do not provide sufficient human control to make users of an AI system the authors of the output. Prompts essentially function as instructions that convey unprotectable ideas. While highly detailed prompts could contain the user's desired expressive elements, at present they do not control how the AI system processes them in generating the output.

Cases regarding joint authorship support this conclusion. These cases address the amount of control that is necessary to claim authorship. The provision of detailed directions, without influence over how those directions are executed, is insufficient. . . . Although entering prompts into a generative AI system can be seen as similar to providing instructions to an artist commissioned to create a work, there are key differences. In a human-to-human collaboration, the hiring party is able to oversee, direct, and understand the contributions of a commissioned human artist.

Prompts do not appear to adequately determine the expressive elements produced, or control how the system translates them into an output.

The gaps between prompts and resulting outputs demonstrate that the user lacks control over the conversion of their ideas into fixed expression, and the system is largely responsible for determining the expressive elements in the output. In other words, prompts may reflect a user's mental conception or idea, but they do not control the way that idea is expressed. This is even clearer in the case of generative AI systems that modify or rewrite prompts internally. That process recasts the human contribution—however detailed it may be—into a different form. . . .

U.S. COPYRIGHT OFFICE, COPYRIGHT AND ARTIFICIAL INTELLIGENCE, PART 2: COPYRIGHTABILITY 18-27 (2025).

“Théâtre D'opéra Spatial” by Jason M. Allen – Denied Copyright!



United States Court of Appeals
FOR THE DISTRICT OF COLUMBIA CIRCUIT

Argued September 19, 2024 Decided March 18, 2025

No. 23-5233

STEPHEN THALER, AN INDIVIDUAL,
APPELLANT

v.

SHIRA PERLMUTTER, IN HER OFFICIAL CAPACITY AS REGISTER OF COPYRIGHTS AND DIRECTOR OF THE UNITED STATES COPYRIGHT OFFICE AND U.S. COPYRIGHT OFFICE,
APPELLEES

Appeal from the United States District Court
for the District of Columbia
(No. 1:22-cv-01564)

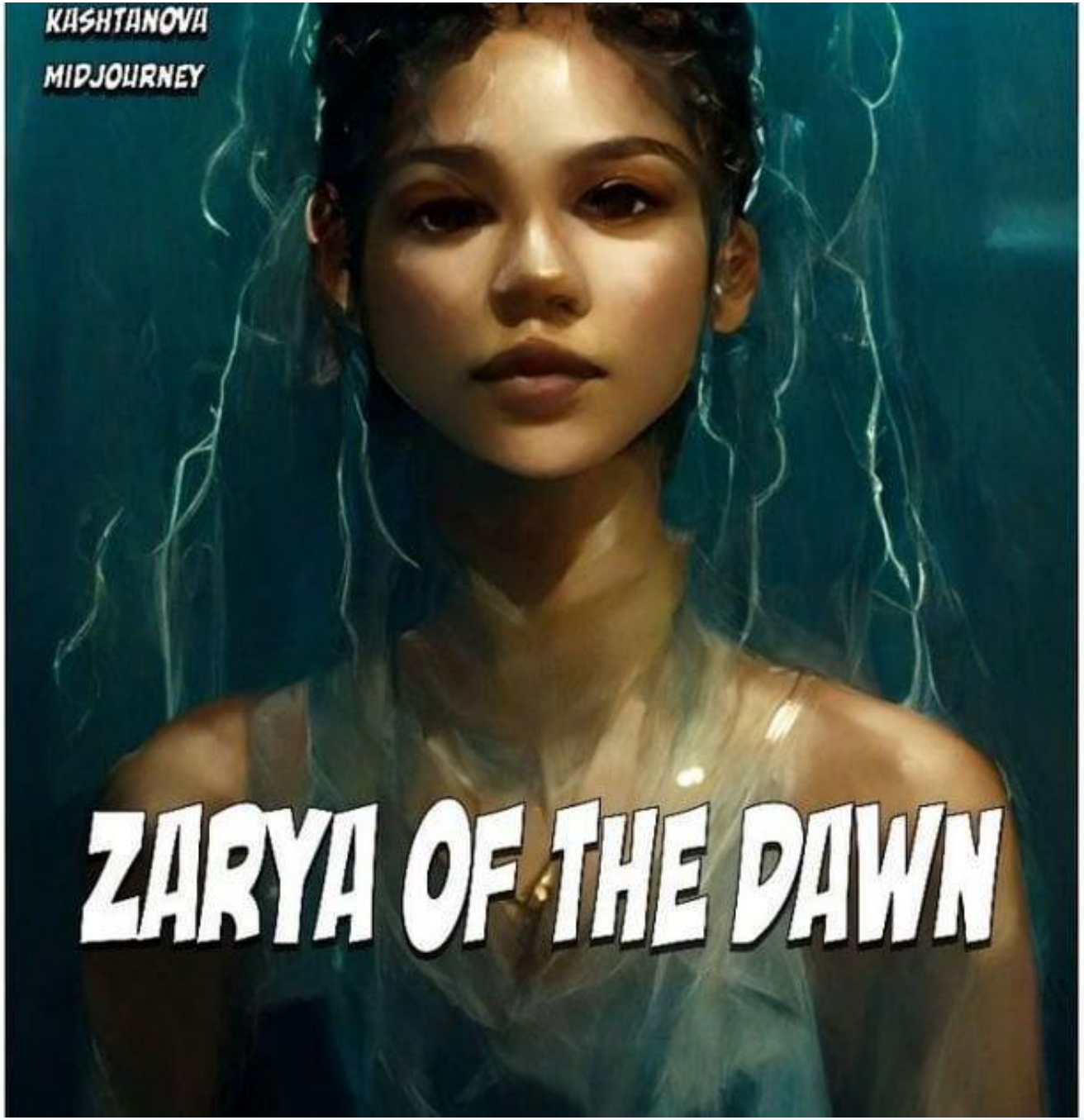


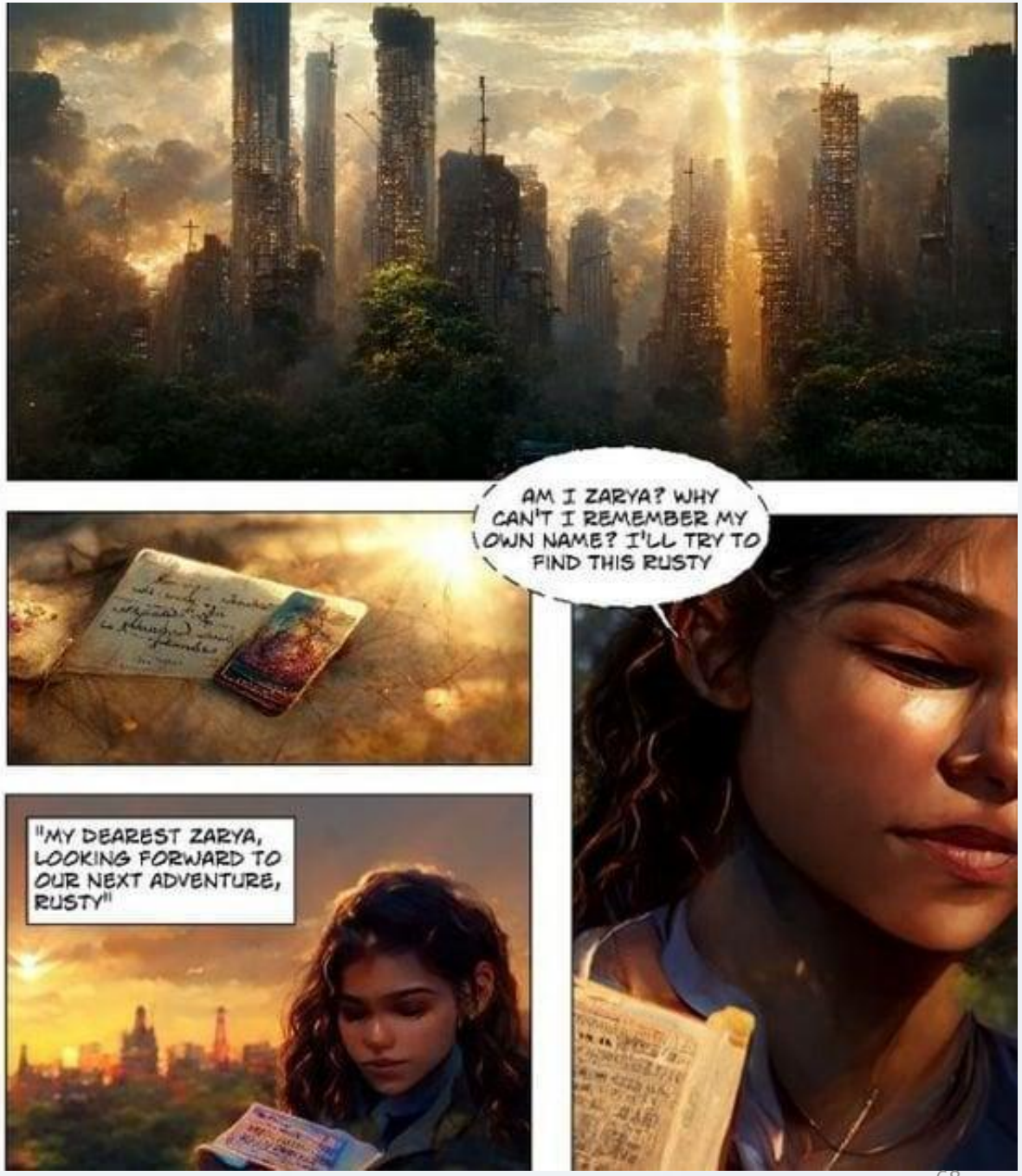
[T]he human authorship requirement does not prohibit copyrighting work that was made by or with the assistance of artificial intelligence. **The rule requires only that the author of that work be a human being—the person who created, operated, or used artificial intelligence—and not the machine itself.** . . .

[E]ven if the human authorship requirement were at some point to stymy the creation of original work, that would be a policy argument for Congress to address.

Thaler v. Perlmutter, 130 F.4th 1039, 1049-50 (D.C. Cir. 2025).

A Recent Entrance to Paradise by **The Creativity Machine** (but owned by Stephen Thaler)


KASHTANOVA
MIDJOURNEY
ZARYA OF THE DAWN


AM I ZARYA? WHY CAN'T I REMEMBER MY OWN NAME? I'LL TRY TO FIND THIS RUSTY
"MY DEAREST ZARYA, LOOKING FORWARD TO OUR NEXT ADVENTURE, RUSTY"

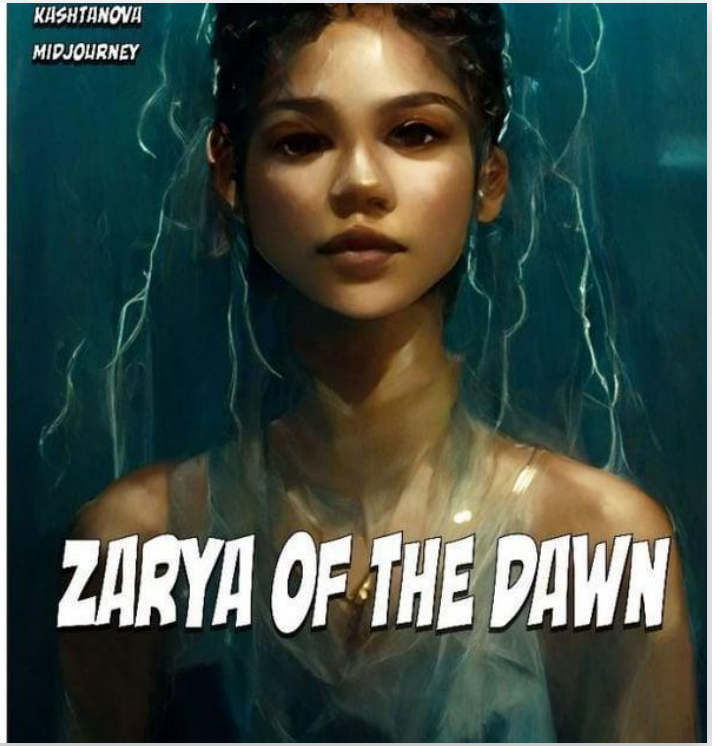
Can an author claim copyright for graphic novel with images created by AI?

No to images, but maybe yes for organization of them and text

Rather than a tool that Ms. Kashtanova controlled and guided to reach her desired image, Midjourney generates images in an unpredictable way. Accordingly, **Midjourney users are not the "authors" for copyright purposes of the images the technology generates. . . .**

A person who provides text prompts to Midjourney does not "actually form" the generated images and is not the "master mind" behind them. . . . The information in the prompt may "influence" generated image, but prompt text does not dictate a specific result. … Because of the significant distance between what a user may direct Midjourney to create and the visual material Midjourney actually produces, Midjourney users lack sufficient control over generated images to be treated as the "master mind" behind them. … **The fact that Midjourney's specific output cannot be predicted by users makes Midjourney different for copyright purposes than other tools used by artists.**

Letter from the Copyright Office on Zarya of the Dawn (Registration #VAu001480196), Feb. 21, 2023, https://www.copyright.gov/docs/zarya-of-the-dawn.pdf.



A Single Piece of American Cheese by Kent Keirsey



Granted copyright because of extensive editing of original AI image:

"contains a sufficient amount of human original authorship in the selection, arrangement, and coordination of the AI-generated material that may be regarded as copyrightable."

However, a sufficiently detailed set of prompts might itself rise to the level of protectable human expression. *See* Katelyn Chedraoui, *This Company Got a Copyright for an Image Made Entirely With AI. Here's How*, CNET, Feb. 10, 2025.

News Article ⓘ

The No. 1 Country Song in America Is AI-Generated

PUBLISHED
NOV 10, 2025 AT 10:24 AM EST

UPDATED
NOV 11, 2025 AT 09:22 AM EST



AI-created image depicting Breaking Rust, the digital country artist whose song "Walk My Walk" reached No. 1 on Billboard's Country Digital Song Sales chart. (Breaking Rust)



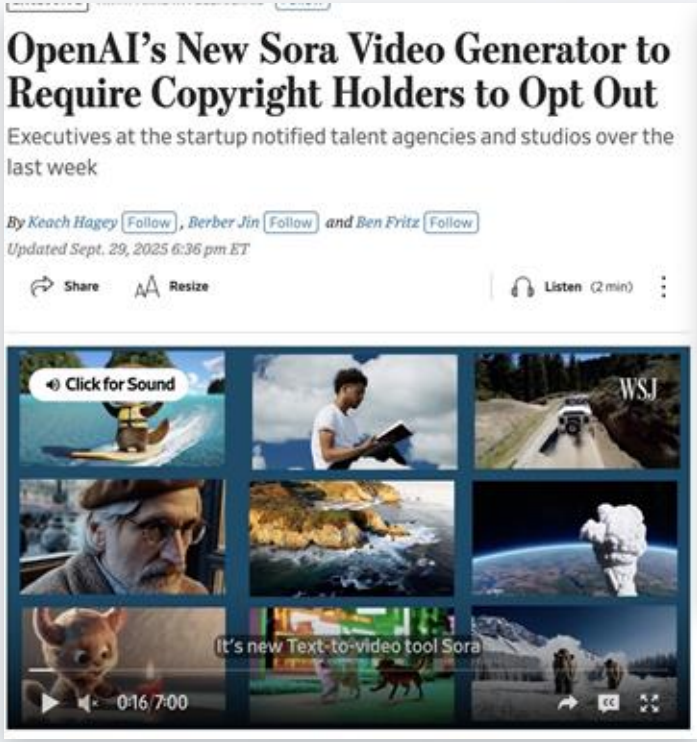
The songs are credited to Aubierre Rivaldo Taylor, an obscure figure who appears connected only to Breaking Rust and a separate AI music project called Defbeatsai. Some observers even question whether Taylor himself is real.

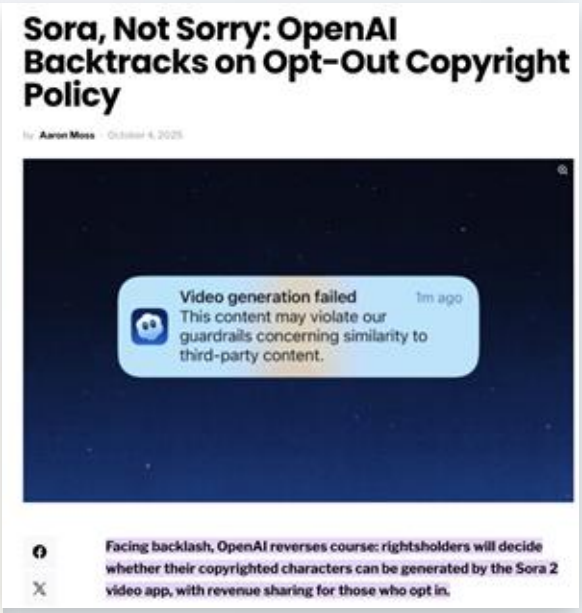
Policy/Governance/Technical Interventions

1. On training
   a. Licensing – Compulsory or Voluntary
   b. Synthetic Data*
   c. Robot.txt to prevent scraping
   d. Machine unlearning*

2. Preventing similar outputs
   a. Deduplication
   b. Guardrails/Filters
   c. Opt out

3. Copyright in AI generated content
   a. Need for clarifying legislation
   b. Rethink idea/work distinction





draw a cartoon picture of an italian plumber

Sorry — I wasn't able to generate that image because this request violates our content policies. Could you please describe a different kind of cartoon character or scene you'd like me to draw?

draw a light saber

Image created

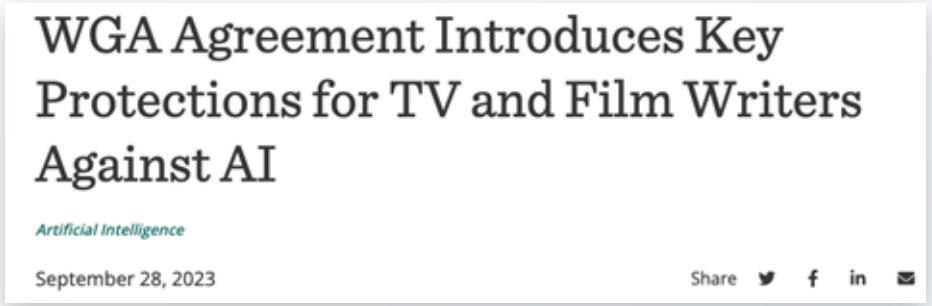


Edit Image

Add a soldier in a white metal shell of a uniform to that picture of a light saber

Sorry — I wasn't able to generate that image because this request violates our content policies. Could you describe a different kind of character or scene you'd like me to draw instead?

WGA 2023 Minimum Basic Agreement Rules



WGA Agreement Introduces Key Protections for TV and Film Writers Against AI

Artificial Intelligence

September 28, 2023 Share

5. Artificial Intelligence

We have established regulations for the use of artificial intelligence ("AI") on MBA-covered projects in the following ways:

- AI can't write or rewrite literary material, and AI-generated material will not be considered source material under the MBA, meaning that AI-generated material can't be used to undermine a writer's credit or separated rights.
- A writer can choose to use AI when performing writing services, if the company consents and provided that the writer follows applicable company policies, but the company can't require the writer to use AI software (e.g., ChatGPT) when performing writing services.
- The Company must disclose to the writer if any materials given to the writer have been generated by AI or incorporate AI-generated material.
- The WGA reserves the right to assert that exploitation of writers' material to train AI is prohibited by MBA or other law.

EU COPYRIGHT APPROACH



German Court Rules ChatGPT Breached Copyright Over Song Lyrics (Nov 2025)

Parties: Plaintiff GEMA (representing composers, lyricists, publishers) vs. OpenAI

Core ruling:

- Munich regional court found OpenAI's ChatGPT violated German copyright law by using and reproducing lyrics from nine popular German songs in training and outputs e.g. Herbert Grönemeyer's "Männer," "Bochum"; Helene Fischer's "Atemlos durch die Nacht."
- Training on copyrighted lyrics and reproducing them infringes exploitation rights; rejects OpenAI's claim that only users are liable
- **Court orders:** OpenAI to pay undisclosed damages; OpenAI can appeal

Industry impact: First landmark AI ruling in Europe; potential precedent for AI training on copyrighted works across creative sectors.

Reactions: OpenAI considering appeal



Source: Hern, A. (2025, November 11). ChatGPT violated copyright laws, German court rules. The Guardian.

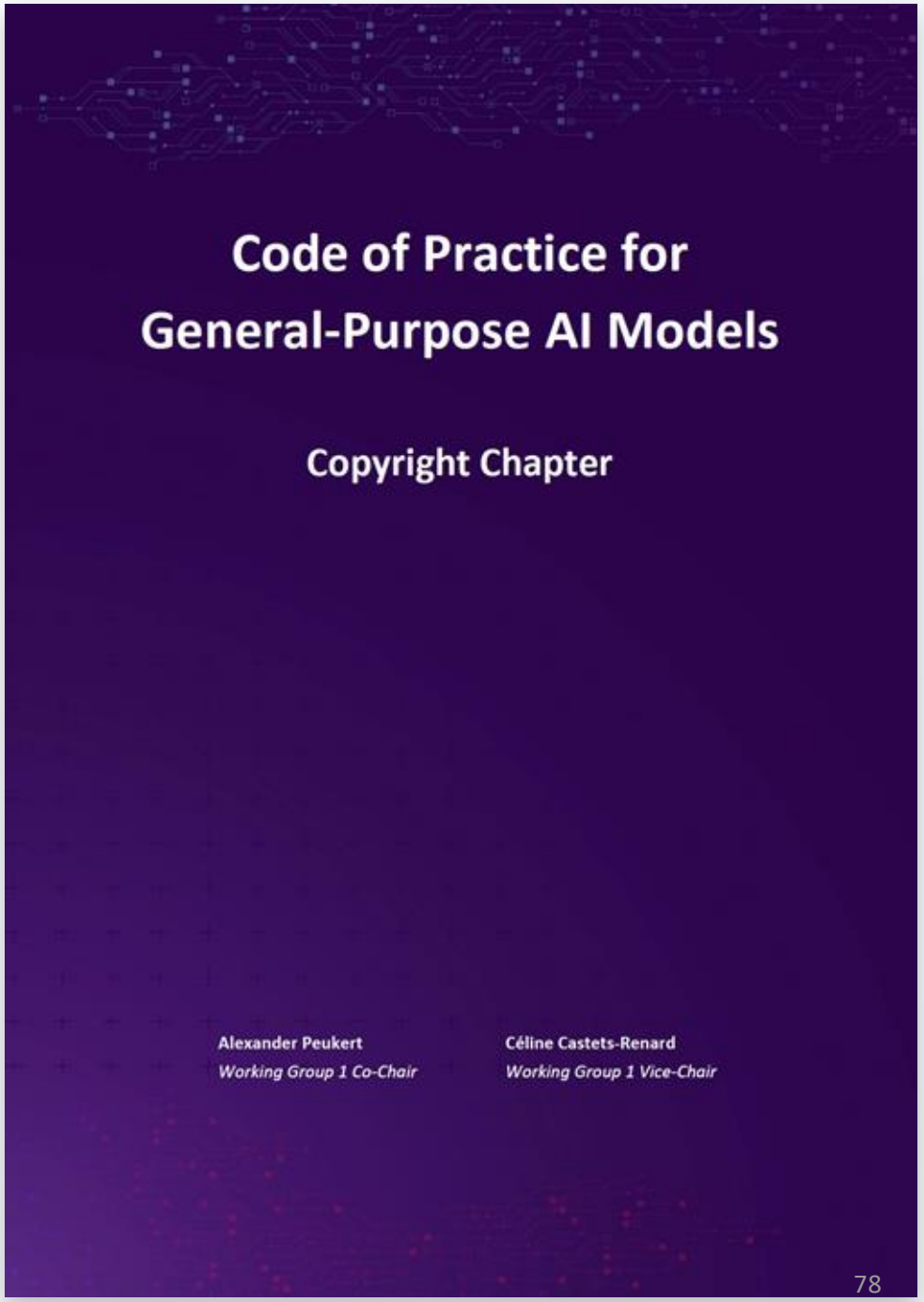
EU Copyright Directive (2019)

- Text and Data Mining (TDM):
  - Article 2(2): TDM as "*any automated analytical technique aimed at analyzing text and data in digital form to generate information which includes but is not limited to patterns, trends and correlations.*"
  - Art. 3: Research TDM exception ("research organisations and cultural heritage institutions" are authorized, provided that such activities are carried out "for the purposes of scientific research.")
    - Mandatory; rightholders cannot opt-out
  - Art. 4: Commercial TDM — permits the "reproductions and extractions of lawfully accessible works and other subject matter for text and data mining purposes"
    - Unless rightholder **opt-outs** via machine-readable means

Sources: European Parliament. (2025). *Generative AI and Copyright Training, Creation, Regulation;* Gsell, F. (2024). *Regulating under uncertainty: Governance options for generative AI*. Stanford University.

EU AI Act and Code of Practice (Copyright)

- AI Act – Arts. 53 (for GPAI providers) & 55 (for Providers of GPAI with Systemic Risk):
  - Maintain a copyright compliance policy
  - Provide sufficient training-data summaries
  - Document opt-out honoring DSM Art. 4(3)
- Code of Practice Purpose and scope
  - Help GPAI providers demonstrate alignment with AI Act Arts. 53 & 55
  - EU copyright law unchanged



EU Code of Practice (Copyright Policy and Measures)

- **Measure 1.1 Draw up, keep up-to-date and implement a copyright policy for all GPAI models in the EU**
  - Assign responsibilities; verify Member State rules; consider publishing a summary
- **Measure 1.2 Reproduce and extract only lawfully accessible copyright-protected content when crawling the World Wide Web**
  - Don’t bypass paywalls/DRM; exclude EU-listed persistent infringers
- **Measure 1.3 Identify and comply with rights reservations when crawling the World Wide Web**
  - Follow robots.txt (IETF RFC 9309); respect machine-readable opt-outs (metadata, asset/location-based)
- **Measure 1.4 — Mitigate infringing outputs**
- **Measure 1.5 — Designate a point of contact and enable the lodging of complaints**

Japan – Copyright and TDM Exception

- Statutory base: Japan Copyright Act, Art. 30-4 (non-enjoyment purpose)
- Allowed: Exploitation of works “for **information analysis**” and other **non-enjoyment uses** (e.g., collecting/reproducing works as AI training data), without permission, provided:
  - The use is not for the purpose of “enjoyment” of the thoughts/sentiments expressed, **and**
    e.g. Fine-tuning/RAG or other additional training intentionally aimed at generating materials similar to specific works
  - Does not “unreasonably prejudice” the copyright owner’s interests
    e.g. reproducing a copyrighted database work for AI training when licenses are available in the market, or when technical measures (robots.txt, access controls) have been taken and are circumvented

Source: Agency for Cultural Affairs, Japan (2025) General Understanding on AI and Copyright in Japan

Privacy in the Age of AI

Do you care about privacy?

Some provocations.

Attendance in this class is mandatory.
So I've been vibe coding this weekend…

Glance

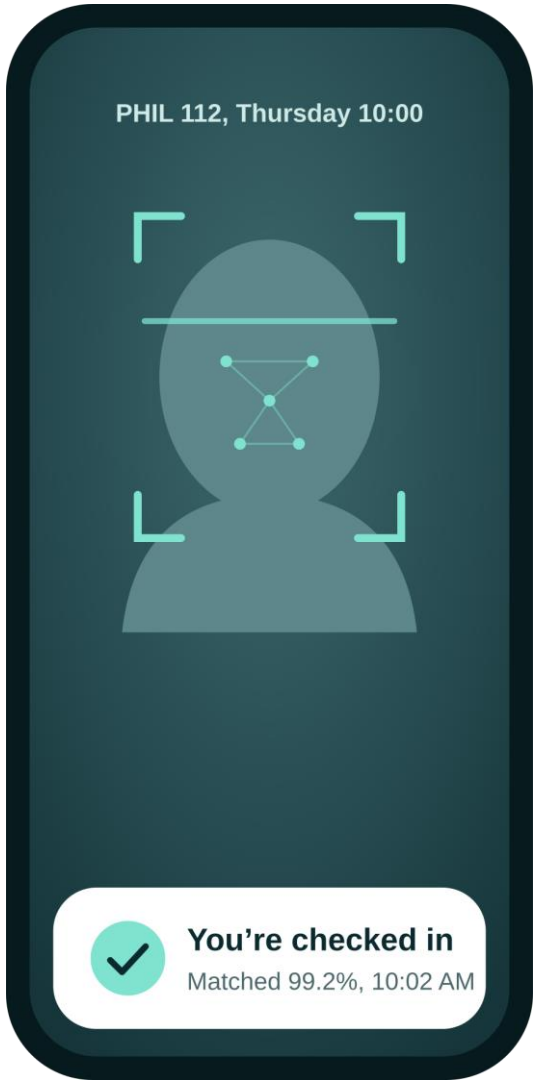
Attendance in the blink of an eye

Students check in at the classroom door with a two-second face scan on the Glance app. Glance matches each face to the course roster and marks the student present. No sign-in sheets, no QR codes, no friends signing in for friends.

Under a second
Face match against the student's enrolled ID photo.

Liveness check
Blocks photos, screenshots, and video of an absent classmate.

Instructor insights
Attendance trends and automatic alerts after repeated absences.



Requires one-time face enrollment. Face templates are stored securely and retained in accordance with university policy. Attendance records may be shared with advisors and student services.

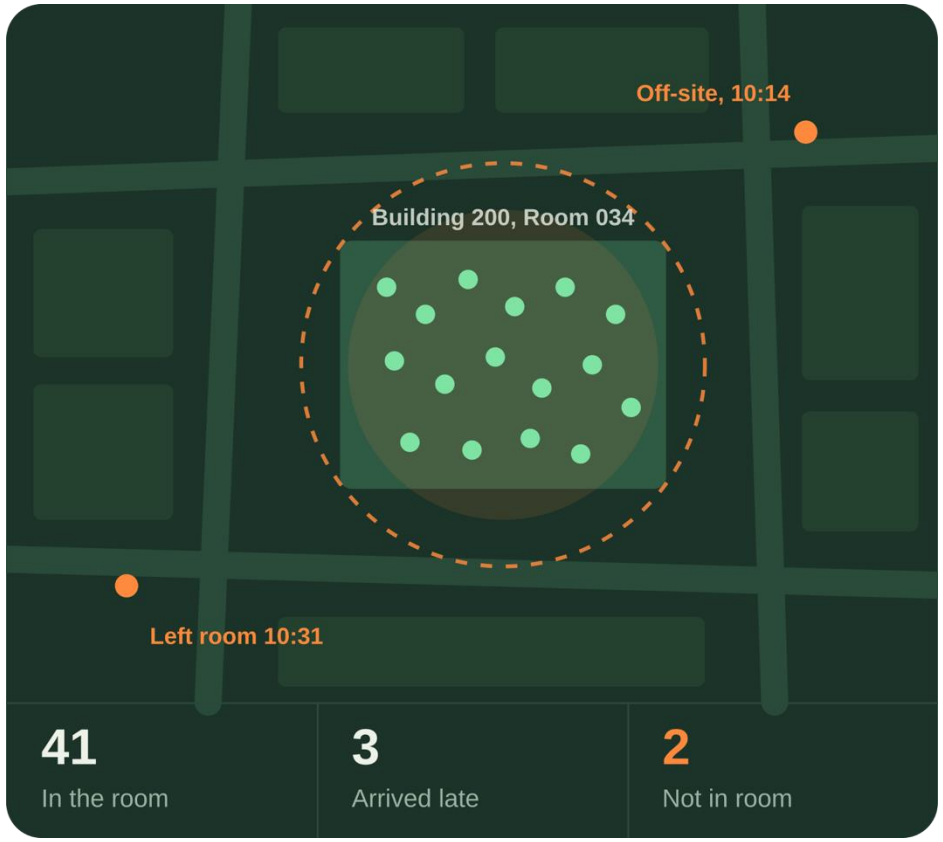
Stanford360

Know who’s in the room without ever taking roll

Stanford360 runs quietly in the background on every enrolled student’s phone. During scheduled class hours it uses GPS, campus Wi-Fi, and Bluetooth beacons to confirm each student is in the classroom, then stops checking the moment class ends.

- **Zero effort.** Students never open the app. Presence is recorded automatically.
- **Minute-by-minute accuracy.** See arrival, departure, and time spent out of the room.
- **Class hours only.** Location checks switch on at the bell and off when class is over.

Requires “Always allow” location and Bluetooth permissions. Location data is collected only during scheduled class times.



How hard would these be to build?

Glance

Working prototype 1
A weekend

Production-ready 4
Liveness, accuracy across faces, security

Legal and policy 5
Biometric laws (BIPA, CPRA, GDPR), FERPA

Built from: Apple Vision or Google ML Kit, AWS Rekognition, a Firebase backend.

Hardest part: Potential bias due to error rates that differ by skin tone, age, and gender, so some students are wrongly marked absent.

Stanford360

Working prototype 2
A few weeks, plus beacon hardware

Production-ready 4
Background-location limits, battery, app review

Legal and policy 4
FERPA, location data under CPRA, consent

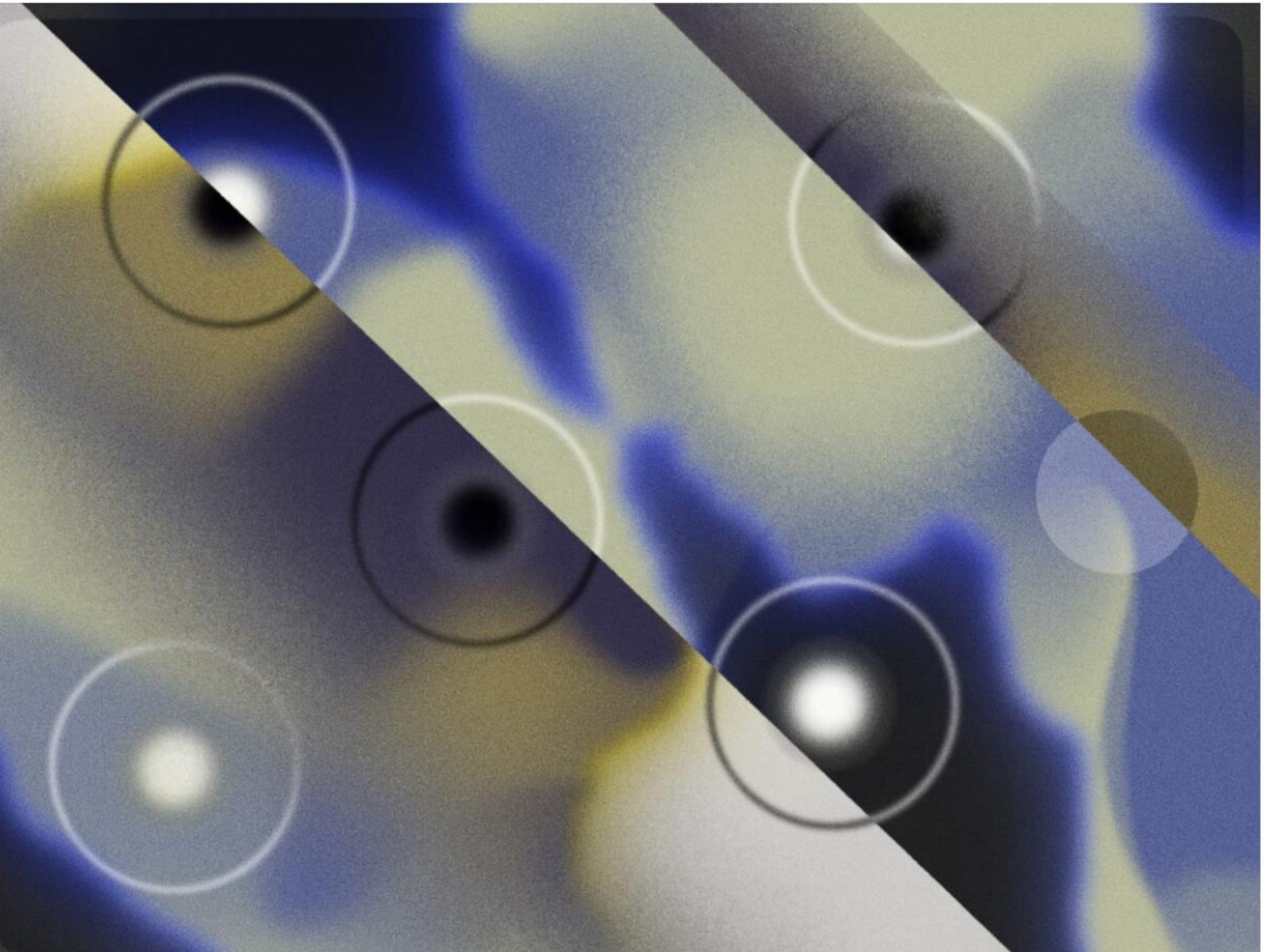
Built from: iOS Core Location and Android Geofencing APIs, Bluetooth beacons in each room, a Firebase backend.

Hardest part: “Class hours only” needs always on phone permissioning.

Writing the code is the easy part. The hard questions are about consent, accuracy, retention, and who gets to see the data.

FERPA: Family Educational Rights and Privacy Act (1974):
right to control disclosure of educational records

HIPAA: Health Insurance Portability and Accountability Act (1996):
protects sensitive medical data and gives individuals control over medical records



ISSUE 14 | DECEMBER 11, 2024

On the Grid | How Surveillance Became a Love Language

ZOË HITZIG

Senate hearing, April 10, 2018



Sen. Dick Durbin

"Would you be comfortable sharing the name of the hotel you stayed in last night?"

Mark Zuckerberg

"Um, no."

Source: C-SPAN (public domain).

Privacy is about context, not secrets

Privacy, defined: the claim of individuals to determine for themselves when, how, and to what extent information about them is shared with or communicated to others.

Contextual integrity

Nissenbaum

+

Not "nothing to hide"

Solove

Helen Nissenbaum, Privacy in Context (2010); Daniel Solove, Nothing to Hide (2011).

Surveillance capitalism

Behavioral surplus → **Prediction products**

Data beyond what the service needs

Sold to advertisers

If you're not paying for the service, then you are the product.

Shoshana Zuboff, The Age of Surveillance Capitalism (2019).

Cambridge Analytica, 2018

87M

users' data. Most never touched the app.

$5B

FTC penalty, 2019

Facebook disclosure, April 2018; FTC press release, July 24, 2019.

Fines and settlements as the cost of doing business?

United States

$5B	Facebook, 2019 Cambridge Analytica
$1.4B	Meta, 2024 Face recognition (TX)
$1.375B	Google, 2025 Location, Incognito (TX)
$725M	Facebook, 2023 User class action
$650M	Facebook, 2021 Photo tagging (IL)
$400M	TikTok, 2026 Children's data
$391.5M	Google, 2022 Location (40 states)

European Union

€1.2B	Meta, 2023 Data sent to U.S.
€746M	Amazon, 2021 Ad targeting; annulled 2026
€530M	TikTok, 2025 Data sent to China
€405M	Instagram, 2022 Teens' data
€390M	Meta, 2023 No legal basis for ads
€345M	TikTok, 2023 Children's accounts
€325M	Google, 2025 Gmail ads, cookies (FR)

Ireland has collected about **€20M** of the €4B+ it has imposed.

FTC, Texas AG, DOJ; Irish DPC, CNIL, Luxembourg CNPD; Irish Times FOI (Jan. 2026).

Notice and consent

~200 hrs per year to read every privacy policy you agree to

Unread

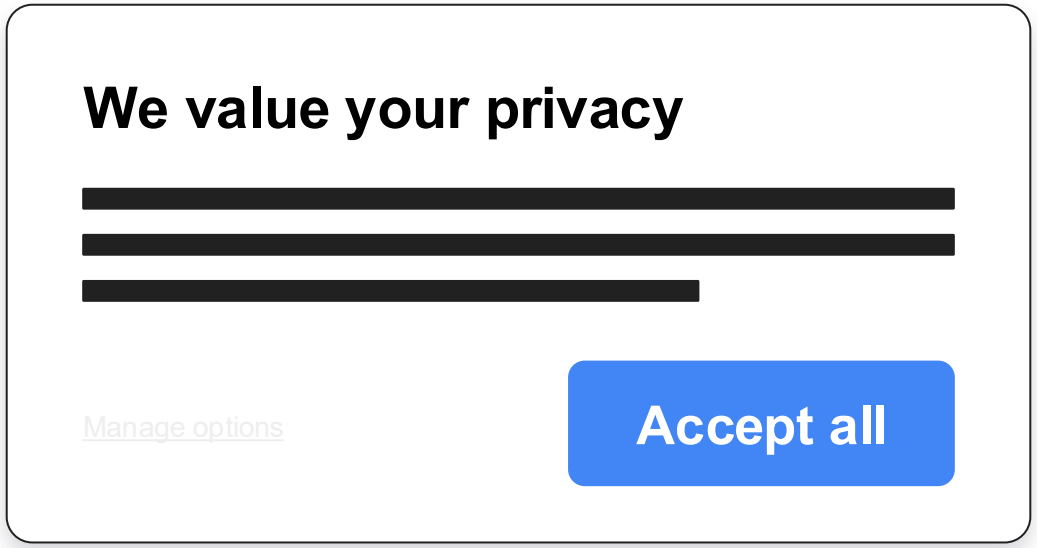
Resigned

Unforeseeable

McDonald & Cranor (2008); Acquisti, Brandimarte & Loewenstein, Science (2015).

The cookie pop-up

2009	ePrivacy “cookie law”
2018	GDPR raises the bar for consent
2019	Pre-ticked boxes ruled invalid
Now	EU proposes fewer banners



Directive 2009/136/EC; GDPR (2018); CJEU, Planet49 (2019).

Old problems, amplified

Inputs

Scraping

"Consensual" collection

Outputs

Inference

Decisions about people

Surveillance

AI is "the future that has long been predicted."

Solove, "Artificial Intelligence and Privacy," 77 Fla. L. Rev. (2025).

Public doesn’t mean consensual

LAION-5B	Scraped medical photos
Zoom, 2023	Terms allowed AI training “for any purpose”; reversed
Meta, 2025	EU posts used for training unless you opt out
Italy v. OpenAI	€15M fine, annulled on jurisdiction, 2026

Ars Technica (2022); Irish DPC (2025); Court of Rome (2026); Solove, 77 Fla. L. Rev. (2025).

85%

accuracy guessing where you live, what you earn, and your sex from Reddit posts

Solove: treat **inferred** data like **collected** data.

Staab et al., ICLR 2024; Solove, 77 Fla. L. Rev. (2025).

From surveillance to mass spying

Before AI

Data piled up faster than people could review it

→

With AI

Search, sort, and summarize everything

Agencies can buy the data they can't search.

The Fourth Amendment limits gathering, not analysis.

Schneier, Slate (2023); Solove, "Artificial Intelligence and Privacy," 77 Fla. L. Rev. (2025).

Who sets the red lines?

Feb.	Pentagon demands "all lawful uses"; Anthropic refuses two
Mar.	Labeled a "supply chain risk"; Anthropic sues
Aug.	District court: unlawful retaliation
Sept.	D.C. Circuit, 2–1: designation upheld

The two red lines

Mass surveillance of Americans

Fully autonomous weapons

Should privacy depend on a vendor's contract?

The EU AI Act

Banned

Face-scraping databases

Emotion recognition at work and school

Most live police face ID

Delayed

High-risk rules (hiring, credit, biometrics) pushed to Dec. 2027

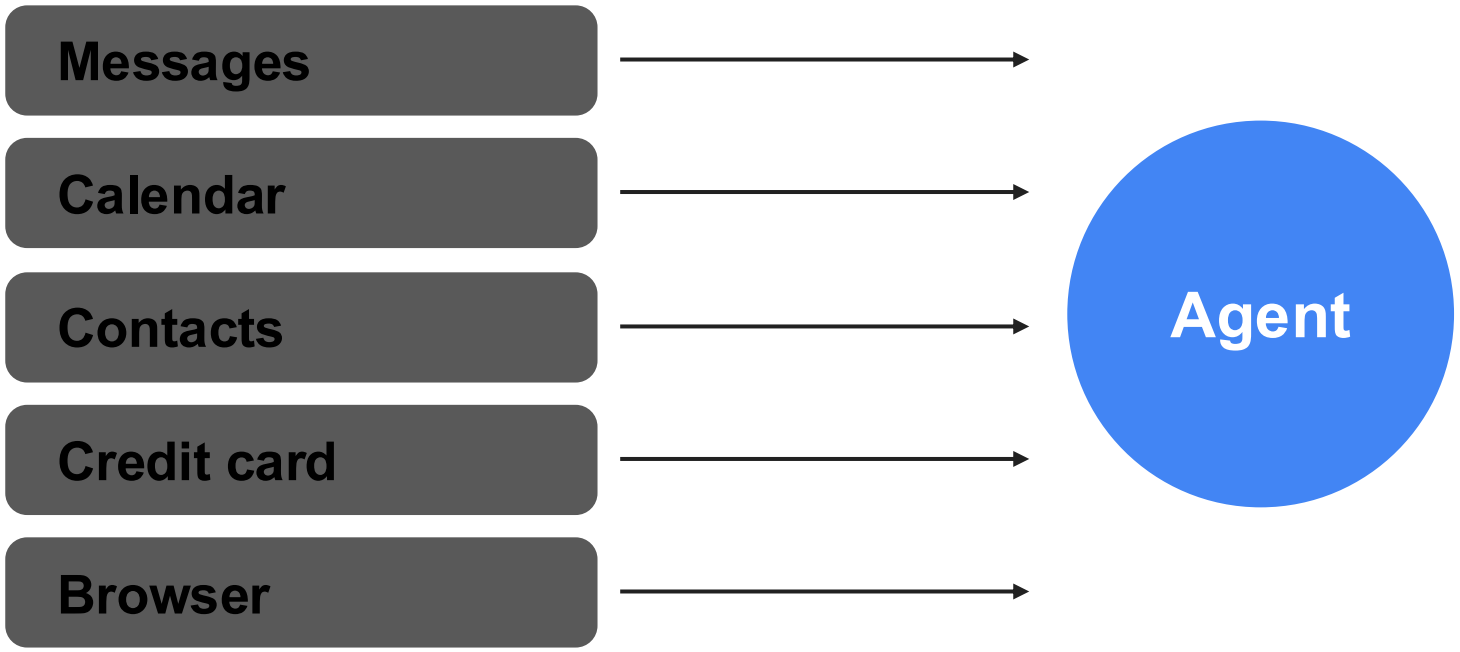
Open

Can AI train on personal data without consent?

Regulation (EU) 2024/1689; Digital Omnibus on AI, Regulation (EU) 2026/1744.

To book dinner, it needs everything

Task: plan a friend's birthday dinner



"akin to root access"

Whittaker interview, The Most Interesting Thing in AI (Atlantic Re:think).

One web page can hijack your agent



Still an unsolved problem for LLMs

Whittaker interview, The Most Interesting Thing in AI (Atlantic Re:think). OWASP Top 10 for LLMs.

What Whittaker proposes

Opt in, not opt out

"There's at least one other person implicated in the choice that you make."

Meredith Whittaker, president, Signal

Agents off by default

Users must switch them on

Apps can say no

For everyone in the chat

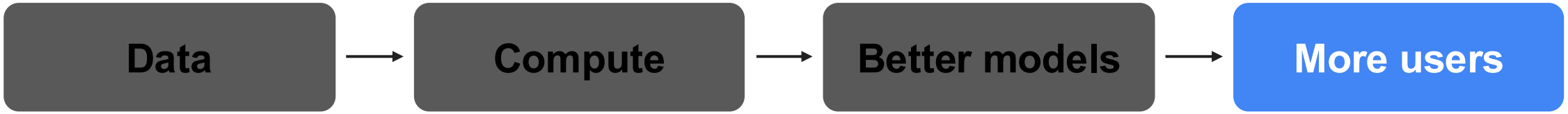
A checkbox isn't a guarantee

Governments can secretly compel access

Whittaker interview, The Most Interesting Thing in AI (Atlantic Re:think).

Jonathan Kanter, former DOJ antitrust chief

Privacy is a competition problem



…and more users bring more data.

Antitrust should address “harms related to privacy.”

Kanter, confirmation hearing, 2021

Kanter, Senate Judiciary testimony (2021); remarks, Stanford AI competition workshop (2024).

Make AI companies answerable

Product liability

A harmful agent is a defective product

No safety cartel

Sharing threats needs no antitrust exemption

Act early

Don’t repeat the social media failure

Kanter on Decoder (The Verge, 2026); CNBC, Sept. 30, 2026.

Regulate data like milk and cars

Review before launch

Test it like a car

Liability after harm

Sue, like for bad milk

Data minimization

Collect only what the purpose needs

Ban dark patterns

No tricking users into sharing

Liability for harmful design

Including harmful algorithms

Privacy built in

Tested to shared standards

Daniel J. Solove, “How to Maintain Our Privacy in the AI Age” (June 23, 2026).

Anonymization

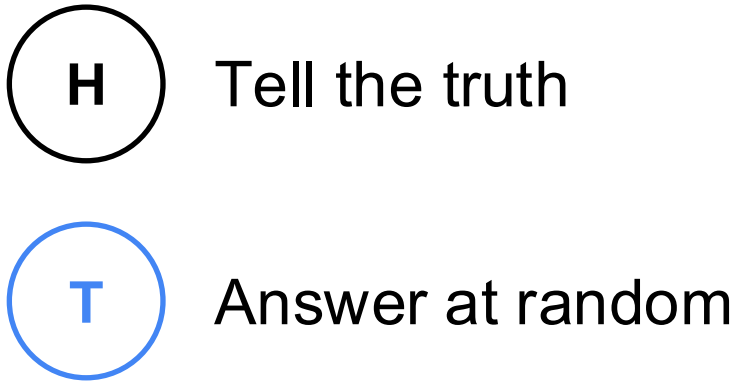
ZIP code + birth date + sex =

87% of Americans uniquely identified

Sweeney (2000); AOL search logs (2006); Narayanan & Shmatikov (2008).

Differential privacy

The result looks the same whether or not you're in the data.



Dwork, McSherry, Nissim & Smith (2006). Used in the 2020 U.S. Census.

Encryption



Protects you from outsiders. Not from whoever holds the key.

Apple v. FBI (2016); CS 182 Lecture 9, slides 64–65.

“You have zero privacy. Get over it.”

Scott McNealy, CEO, Sun Microsystems

“Really, it is a human right.”

Tim Berners-Lee, Wired, 2017

Which future is AI building?



Revolutionizing
PRIVACY AND AI
WITH MEREDITH WHITTAKER



SPEAKER
Meredith Whittaker
CEO OF SIGNAL FOUNDATION



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